PLANNING &
DEVELOPMENT
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP
Subject: PLTA-26-4 / Amending Sections 1.4.3, 1.4.4, 2.2.3, 5.1.4, and 5.7.2 of the UDC – relevant to Agricultural Uses
Date: October 12, 2026

Background:
The item for consideration is a UDC Text Amendment. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 10/12/2026
- Public Services Committee 10/19/2026
- Second reading 10/26/2026
- Public Services Committee 11/2/2026
- Third and final reading 11/9/2026

Planning Commission Recommendation:
The Planning Commission heard this item at their meeting on October 5, 2026 and recommended approval of the amendments (by a vote of 4-0), with the following modification:
Changing subsection 2.2.3.b.5 to add:
"(f) Upon involuntary annexation into the City of Cheyenne existing agricultural operations and properties are granted grandfather status to continue operating as nonconforming uses."

This language is likely better placed in section 1.3.11 of the UDC, but that was not a section open to review by the Planning Commission. Section 1.3.11 is the section of the UDC dealing with nonconformances, and nothing in that section clearly allows uses on annexed land to continue (though Staff has always treated operations legal in the County as legal nonconforming upon annexation).

The Staff Report sent to the Planning Commission is attached and has not been modified.

Public Comment
As of the creation of this memo (October 7, 2026), Staff has received multiple inquires and comments from the public related to the proposed amendment. The four Ordinances combined have received 1,098 views on the PublicInput page and 10 comments, most of the comments were directed at this amendment. Comments received prior to Planning Commission are included in the Planning Commission Staff Report, and other comments received at or after Planning Commission are attached after the Staff Report.

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Planning Commission Staff Report
4. Comments

APPROVED as to form only:
By John Brodie at 3:56 pm, Oct 6, 2026

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTIONS 1.4.3, 1.4.4, 2.2.3, 5.1.4, AND 5.7.2 OF THE CHEYENNE UNIFIED DEVELOPMENT CODE TO ADD AND CLARIFY SPECIFIED USE ALLOWANCES, CLARIFY PROCESSES FOR AGRICULTURAL USES AND PROVIDING DEFINITIONS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Cheyenne Unified Development Code (UDC).

Section 2. That on October 5, 2026, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.4.3 of the UDC is amended to add the following definition, with Section 1.4.3, as amended, set forth in its entirety in Exhibit A, which is attached hereto and incorporated herein:

Animal Unit. Animal unit (AU) is a standardized unit of measurement used to determine livestock density. One (1.0) Animal Unit shall be determined in accordance with the animal-unit equivalencies set forth below, regardless of individual live animal weight. The species identified below are listed solely for purposes of establishing Animal Unit equivalencies and shall not be construed to authorize the keeping of any animal or poultry species otherwise prohibited or restricted by this code or under the Municipal Code. For any animal or poultry species not expressly listed below, the Director shall determine the appropriate Animal Unit classification based on the mature size and characteristics of the species. Any classification by the Director is likewise solely for purposes of determining livestock density and shall not be construed to authorize or restrict the keeping of any species, which in all cases remains governed by this code and the Municipal Code:

Large Livestock (beef or dairy cattle, horses or mules): 1.0 per animal
Medium Livestock (sheep, goats, or alpacas): 0.20 per animal
Small Livestock and Poultry (chickens, turkeys, or ducks): 0.02 per animal

Incidental Cleaning and Processing. The incidental slaughtering, cleaning, field dressing, or processing of animals for personal consumption, including fish, wild game harvested through lawful hunting, or livestock raised on-site.

Personal or Non-Commercial Harvest. The customary, non-commercial harvesting, slaughtering, or processing of livestock as an accessory use to a primary residential or standard agricultural operation.

Section 4. That Section 1.4.4.h of the UDC is amended to revise existing uses, add new uses, and repeal existing uses as set forth in this Section, with Section 1.4.4, as amended, set forth in its entirety in Exhibit A:

h. ***Agricultural Uses.*** The Agriculture use category is for uses that are commonly associated with an agrarian or rustic lifestyle, and which demand little or no public infrastructure or services.

General Agriculture. The production of grain, animals, food and fiber; the science and art of farming and ranching; ~~and~~ the work of cultivating the soil, producing crops and raising livestock; and the small-scale, intermittent harvesting and processing of livestock raised primarily on the premises. General Agriculture specifically excludes ~~concentrated feeding operations where swine are confined, fed and maintained for 45 consecutive days or more in any 12-month period.~~ Concentrated Feeding Operations, Commercial Stables, and Nurseries. Any agricultural use that exceeds the thresholds established by Gardens and Homemade Foods shall be considered General Agriculture.

~~*Limited Agriculture.* The production of grain, animals, food and fiber on a small scale where any impacts on potential adjacent property from storage, operations, and equipment can be internalized into the site or buffered from abutting areas, typically not occurring on lots or parcels larger than 10 acres.~~

Gardens and Homemade Foods. Use of a property to grow, harvest, prepare or process any food or drink products that does not produce more than ten thousand (10,000) individual food or drink products annually and does not exceed ten thousand dollars ($10,000.00) in gross revenue annually from the food and drink products. Gardens and Homemade Foods shall include livestock if permitted in the zone district by operation of municipal code. Examples include small residential gardens, community gardens, and small-scale agricultural operations on larger parcels.

Agricultural Equipment ~~and Supply.~~ Sales. An Agriculture use where the land and buildings are used for retail sales of equipment and materials used for agricultural-related land uses, and accessory servicing of agriculture equipment.

Agriculture Product Sales / Farmers Market. An Agriculture use where land, ~~and~~ trucks, trailers, or buildings are used for the retail sale of raw agricultural products ~~and operated without any additional or permanent site facilities than are otherwise associated with agriculture use.~~ in accordance with any applicable state and federal regulations. Road-side stands, ~~truck sales, or barn sales~~ food stands, and sales from trucks or trailers are examples of such uses. ~~, however the intensity and frequency of such sales shall be so that no additional parking, roads, structures, warehouses, or other storage facilities are necessary on the site.~~ This use involves less than 2,000 square feet of gross leasable sales area.

Agritourism. A commercial enterprise that links agricultural production with tourism, inviting visitors to working farms, ranches, or agricultural businesses. This use includes activities such as pumpkin patches, corn mazes, petting zoos and similar uses.

Arenas and Show Barns. An Agriculture use where the land and buildings are used for show or sale of livestock, rodeos, and where the public can attend these and other related activities.

Commercial Stables. An Agriculture use where land and buildings are used for the business of boarding horses, donkeys, mules, burros, llamas or other similar ~~equine~~ animals.

Concentrated Animal Feeding Operations and Slaughterhouses. An Agriculture Use where livestock are confined, fed and maintained for forty-five (45) consecutive days or more in any twelve (12)-month period, or where livestock are harvested as a principal use. Concentrated Feeding Operations apply only to properties with greater than one (1.0) animal unit per acre. Slaughterhouse shall not include personal or non-commercial harvest or incidental cleaning and processing of animals.

Section 5. That Section 2.2.3.b of the UDC is amended to revise site plan applicability, as set forth in this Section, with Section 2.2.3, as amended, set forth in its entirety in Exhibit A:

b. ***Applicability.*** An application for a site plan shall be submitted by the owner or authorized agent where any of the following occur:

1. Any change of use or a new building.
2. Alterations to the site affecting over 15% of the nonbuilding area of the site (examples include changes to parking, or open space and landscape areas).
3. Any other development activity or change of use that triggers applicability and compliance with any of the Design Standards in Article 6.
4. Any other on-site development activity or change of use that triggers improvements in the public right-of-way and applicability and compliance with any of the Standards in Article 4.
5. No site plan is required for:
   (a) single ~~family, duplex, or townhouse~~ Detached Dwelling, Accessory Dwelling Unit, Duplex, or Townhouse development, except ~~when associated with~~ the common lots associated with Cottage Lots; ~~or a Regulating Plan or Development Master Plan.~~
   (b) limited business operations occurring in a single-unit residential property, including Group Housing, Live/Work if the non-residential use is not required to have a site plan, Family Child Care Home (FCCH), Family Child Care Center (FCCC), and Home Occupations;
   (c) Agricultural uses which are not expected to have significant customer impacts, including Nurseries, Landscaping; Gardens and Homemade Foods; and General Agriculture (if no on-site sales are proposed);
   (d) Cemeteries;
   (e) Military mission-oriented facilities;
   (f) Upon involuntary annexation into the City of Cheyenne existing agricultural operations and properties are granted grandfather status to continue operating as nonconforming uses.

Section 6. That Table 5-1 of Section 5.1.4 of the UDC is amended to add the following use permissions and repeal a use as specified, as set forth in its entirety in Exhibit B, which is attached hereto and incorporated herein:

Table 5-1: Zoning District Uses																					
Zoning Districts / *Category of Uses / Specific Uses*	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS
Agriculture Uses																					
General Agriculture	P	C											C	C	P				P	P	P
~~Limited Agriculture~~	~~P~~	~~P~~																		~~P~~	~~P~~
Gardens and Homemade Foods	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Agricultural equipment ~~or product~~ sales	C										P								P		P
Agriculture Product Sales / Farmers Market	P	P								P	P	P				P	P		P		P
Agritourism	P	P	P	C	C		C				C		P	P	P			P	P		P
Commercial stables; and arenas and show barns	P ~~C~~	C																	P		P
Nurseries, landscaping	P	P									C		P	P			C				P
Concentrated Feeding Operations and Slaughterhouses	S												S	S					S		

P = Use permitted by right A = use permitted after administrative review C = Use permitted after conditional discretionary review
S = Use permitted after special use review (blank = prohibited use)

Section 7. That Section 5.7.2.k of the UDC is amended add a new allowance, as set forth in this Section, with Section 5.7.2 as amended, set forth in its entirety in Exhibit A.

k. Specific Allowances.
   1. Mobile Service Providers Permitted at Client Residences. Certain businesses that involve providing services at a client's home are permitted to operate at the client's residence and are not subject to home occupation regulations at that location provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include house-call veterinarians, mobile massage therapists, mobile pet groomers, and similar providers.
   2. Office-Only Use for Off-Site Businesses. A business that is not typically permitted to operate as a home occupation may be allowed if the home is used exclusively for office-related functions and no clients, customers, employees, or business activities take place at the home provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include administrative work, scheduling, bookkeeping, or storage of vehicles or materials related to businesses that operate off site like food trucks, lawn care businesses, snow removal services, etc.
   3. Garden and Homemade Foods. Garden and Homemade Foods, including personal or non-commercial harvest, and incidental cleaning and processing of animals are exempt from requiring a home occupation if the Garden and Homemade Foods are conducted without a defined business entity and there are no on-site sales. Garden and Homemade Foods conducted using a defined business entity or with on-site sales is required to receive home occupation approval.

Section 8. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 9. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

_____
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

_____
KYLIE SODEN, CITY CLERK

Published:_____
Wyoming Tribune-Eagle

EXHIBIT A

Changes to UDC 1.4.3, 1.4.4, 2.2.3, and 5.7.2 in context

1.4.3 Defined Terms.

All words and phrases shall have their ordinary and customary meanings unless the context of the word or phrase indicates otherwise. The following terms shall have the meaning given below, unless the context of the use of the term clearly indicates otherwise based on the Purposes, Intent, Design Objective or other guidance associated with its use in a particular section.

Abutting. A description of proximity where two elements share a common boundary.

Access Point. A driveway, internal access street or similar vehicular entrance or exit to the interior of a block, lot or parcel from a street.

Accessory Use. A subordinate use, clearly incidental and related to the principal use and located on the same property.

Activity Center. Places where economic and social activity are focused. In addition, where the code specifically references PlanCheyenne or references specific types of activity centers described in PlanCheyenne the additional guidance in the Plan may be used to determine the context or applicability of a particular standard.

Adjacent. A description of the proximity of two elements which includes abutting and any surrounding vicinity where the impacts described could be reasonably assumed to extend.

Alley. A low capacity, low speed and minor street or access way typically located on the rear or side of properties and used for access to parking, service areas, accessory buildings or easements and not intended for through traffic.

Animal Unit. Animal unit (AU) is a standardized unit of measurement used to determine livestock density. One (1.0) Animal Unit shall be determined in accordance with the animal-unit equivalencies set forth below, regardless of individual live animal weight. The species identified below are listed solely for purposes of establishing Animal Unit equivalencies and shall not be construed to authorize the keeping of any animal or poultry species otherwise prohibited or restricted by this code or under the Municipal Code. For any animal or poultry species not expressly listed below, the Director shall determine the appropriate Animal Unit classification based on the mature size and characteristics of the species. Any classification by the Director is likewise solely for purposes of determining livestock density and shall not be construed to authorize or restrict the keeping of any species, which in all cases remains governed by this code and the Municipal Code:

1. Large Livestock (beef or dairy cattle, horses or mules): 1.0 per animal
2. Medium Livestock (sheep, goats, or alpacas): 0.20 per animal
3. Small Livestock and Poultry (chickens, turkeys, or ducks): 0.02 per animal

Antenna. Any exterior transmitting or receiving communication device mounted on a tower, building or structure and used in communications that radiate or capture electromagnetic waves, digital signals, analog signals, radio frequencies (excluding radar signals), wireless telecommunications signals or other communication signals.

Appeal. A written request for a review of any final action or decision allowed by the provisions of this Title.

Applicant. Any person(s), firm, corporation or entity requesting permission or desiring to officially apply for any action regulated by this Title.

Average Daily Traffic (ADT). The total volume of vehicles during a given time period (in whole days greater than one day and less than one year) divided by the number of days in that time period.

Awning. A shelter constructed of non-rigid materials along windows and sidewalks at the first story of a building, and mounted on a supporting framework projecting from and supported by the exterior wall of a building.

Base Flood Elevation. The elevation of the flood having a one percent chance of being equaled or exceeded in any given year.

Berm. A mound of earth designed to provide a screen.

Best Management Practice. A technique, process, activity, or structure used to reduce pollutant discharges in stormwater. BMPs include source control practices (non-structural BMPs) and engineered structures designed to treat runoff. BMPs are most effective when used in combination and selected and designed based on site-specific characteristics.

Bicycle Route. A portion of a system of bikeways designated by appropriate route markers which can be a bicycle trail or bikeway.

Bicycle Trail. A trail or path separated from motor vehicles and designated exclusively for bicycles or shared by bicycles and pedestrians.

Bikeway. A street designed to incorporate bicycle travel through either shared vehicle / bicycle lanes or designated bicycle lanes.

Billboard. A sign structure advertising an establishment, a message, merchandise, service or entertainment which is not located, sold, produced, manufactured or furnished at the property on which the sign is located. Billboard includes Digital Billboard as defined in this code.

Blinking. A form of flashing where the pattern of sudden illumination changes occurs with more than 2 on-off cycles per second.

Block. An area of land that is entirely bounded by streets or other boundary permitted by these regulations where streets are not appropriate based on the context.

Block Frontage. The side or sides of a block that the majority of the lots or tracts face.

BMP Maintenance. Routinely scheduled activities, as well as non-routine repairs that may be required after large storms, or as a result of other unforeseen problems, as necessary to ensure proper BMP function.

Building. Any structure used or intended for supporting or sheltering any use or occupancy.

Building, Accessory. A detached, subordinate structure, the use of which is clearly incidental and related to that of the principal building or use of the land, and which is located on the same property as that of the principal structure or use.

Building, Attached. A building having one or more party walls in common with an adjacent building.

Building, Detached. A building having no common wall or structural attachment with another building.

Building, Existing. A building erected prior to the adoption of the ordinance codified in this Title, or prior to the effective date of a provision in this Title, whichever is earlier, or one for which a building permit has been issued, or erected in accordance with this code after its adoption.

Building, Nonconforming. A building existing or one for which a building permit has been issued at the time of the adoption of this code which does not comply with the regulations of the zoning district in which the building is located.

Building, Principal. A building in which is conducted the main or principal use of the property on which the building is situated.

Canopy. A shelter constructed of rigid materials covered with fabric, metal or other material, along windows and sidewalks at the first story of a building, and projecting from the exterior wall, which may be freestanding or supported by a building at one or more points and by columns or posts embedded in the ground at other points.

Caretaker Unit. One or more living quarters or lodging facilities located within a non-residential building for the use of employees of the use. A Caretaker Unit shall not be considered a 'residential use' or 'residential unit' for the purposes of this code but shall be considered part of the non-residential square footage for the purposes of the code. The combined square footage of all Caretaker Units shall not comprise more than ten (10) percent of the principal use's building square footage (should dwelling area exceed this amount, the living area shall be determined to be a "Mixed-use Dwelling" and a residential use for the purposes of this code). A Caretaker Unit is allowed as part of the approval of the principal use without any more restrictive approval process than that warranted for the principal use.

Certificate of Compliance. A certificate issued by the Development Office which indicates that the site plan requirements have been met.

Changeable Sign. A sign whose informational content can be changed or altered by manual, electric, electromechanical or electronic means. Changeable signs do not include Digital Billboards as defined in this code.

Change of Use. Change of use constitutes at least one of the following:

1. The proposed use is appreciably different than the current use;
2. There is an increase in the size of the existing building or extent of the use of the land;
3. The use is permitted in the zoning district in which the use is located, but requires more parking than the previous use;
4. The number of vehicle trips generated by the new use is or will be greater than the number of vehicle trips generated by the previous use as determined by the Institute of Transportation Engineers Trip Generation, latest edition;
5. The amount of stormwater runoff or impervious (to drainage) surface area will be increased with the new use.

Channel. A natural or artificial watercourse with a definite bed and banks that conveys continuously or periodically flowing water. Interchangeable terms include creek, drainageway, river, stream, and watercourse.

City Engineer. The City of Cheyenne City Engineer, his designated representative or the City Engineering Department.

Comprehensive Plan. The general plan for land use, transportation, utilities, annexation, and community facilities prepared and maintained by the Commission, and any other more specific plan, program or policy prepared under the guidance of that plan.

Construction, New. Structures for which the construction commenced on or after the effective date of the ordinance codified in this Title.

Construction, Start of. The first placement of permanent construction of a structure (other than a manufactured home), such as the excavation of footings or foundations, or the pouring of slabs or foundations. Permanent construction does not include land preparation, such as clearing, grading and filling, nor does it include the installation of streets and/or sidewalks. For a structure (other than a manufactured home) without a basement or poured footings, the "start of construction" includes the first permanent framing or assembly of the structure or any part thereof on its piling or foundation. For manufactured home not within a manufactured home park or subdivision, "start of construction" means the affixing of the manufactured home to its permanent site. For manufactured home within manufactured home parks or manufactured home subdivisions, "start of construction" is the date on which the structure is to be affixed.

Corner lot. See "Lot, corner."

Crosswalk. Any portion of a roadway distinctly indicated for pedestrian crossing.

Cul-de-sac. A short dead-end street terminating with a vehicular turn-around area.

Curb Radii. The curved or flared portion of a street curb at driveway approaches or intersections.

Decorative Fence. A fence constructed out of materials such as wood, stone, or metal, or a combination thereof, primarily for aesthetic purposes to enhance the appearance of a property and generally not obstructing the visibility into or out of a property. A decorative fence shall not include chain link, wire, snow fences, or a standard wooden or vinyl privacy fences

Detention. The temporary storage of storm runoff in a stormwater management facility with the goals of controlling peak discharge rates and providing gravity settling of pollutants.

Detention Facility. A detention basin or alternative structure designed for the purpose of temporary storage of stream flow or surface runoff and gradual release of stored water at controlled rates.

Developer. The owner of land proposed for development, or the owner's authorized representative, or any person who causes the following to take place either directly or indirectly: division of property for the purpose of development; sells, leases or develops property, or offers or advertises or otherwise engages in business for the same; or has control or is controlled in such a way to have influence in any of the above.

Development. Any man-made change to real estate, including, but not limited to, the construction of buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling.

Development Footprint. The development footprint is the total land area that is permanently affected by development activities, and includes buildings, structures, hardscape, utilities, roads and parking areas, maneuvering areas, storage areas, areas associated with the use on the property, and areas cleared of natural vegetation and topsoil.

Digital Billboard. A billboard displaying static images controlled by electronic communications.

Dissolve. A transition between digital messages that is achieved with varying light intensity and where the first message gradually appears to dissipate and loses legibility simultaneous to the gradual appearance and legibility of the subsequent message.

Double frontage lot. See "Lot, double frontage."

Drive-in or Drive-up Facility. A portion of an establishment designed for retail or service to persons in automobiles, including a driveway approach, order facilities, signs and delivery windows.

Driveway. A vehicle access way located on private property.

Driveway Approach. A constructed vehicle access point within the right-of-way between the roadway and the adjacent property line.

Dwelling Unit. One or more rooms which are intended for human occupancy as a place of residence with facilities for living, cooking and eating for one family unit, manifesting around one single kitchen, excluding wet bars with no stove or range, and one single laundry facility. Cooking facilities and other accommodations, such as laundry, should be accessible to all occupants of the dwelling through internally connected spaces.

Easement. A permanent or temporary grant of right by a property owner to the public, a corporation or other person(s) for the use of a strip or parcel of land for specified purposes. Ownership shall remain with the property owner.

Electrical Sign. A sign or sign structure in which electrical wiring, connections or fixtures are used. Electrical sign does not include a digital billboard as defined in this section.

Fade. A transition between static message displays that is achieved with varying light intensity and where the first message gradually loses light intensity to the point of not being legible and the subsequent message gradually increases intensity to the point of legibility.

Family Unit. One or more persons who are related by blood, marriage, domestic partnership or legal adoption living together as a single household; or a group of not more than four (4) persons not related by blood, marriage, domestic partnership or legal adoption, living together as a single household.

Fence. A man-made partition, structure, wall or a gate erected as a dividing marker, barrier, enclosure or screening device.

Flag. A sign made of fabric or other non-rigid material with no enclosing framework containing distinctive colors, patterns, or symbols, used as identification for or a symbol of a government, political subdivision, or other entity.

Flashing. A pattern of changing light illumination where the sign illumination alternates suddenly between fully illuminated and fully non-illuminated in a time frame of less than 4 seconds.

Floor Area Ratio (FAR). The total square feet of the building divided by the total square feet of the lot the building is located on.

Foot Candle. A unit of illuminance equal to 1 lumen, uniformly incident upon an area of 1 square foot.

Freeboard. A factor of safety usually expressed in feet above a flood level for purposes of floodplain management. Freeboard compensates for the many unknown factors that could contribute to flood heights greater than the height calculated for the design flood.

Functional turf grass. An area of living turf grass or lawn that is used regularly for human recreational purposes or domestic animal use. Functional turf grass or lawns include Kentucky bluegrasses, fescues, or similar sod-forming grasses requiring ½ inch or more of supplemental watering per week during hot, dry periods.

Garage. A building or portions of a building for the storage of automobiles or other property, accessory to the principle use of the site.

Greenway. A linear open space established along either a natural corridor, such as a stream valley, or overland along a road or railroad right-of-way converted to recreational use; a natural or landscaped course prepared for pedestrian or bicycle passage; certain designated strips or linear parks and open spaces connected and designated by the City as part of the Greenway System.

Height. When referring to a tower or other structure, height is the distance measured from the finished grade of the parcel to the highest point on the tower or other structure, including the base pad and any antenna.

High-power Transmission Lines. Transmission lines which carry sixty-nine thousand (69,000) volts or more.

Incidental Cleaning and Processing. The incidental slaughtering, cleaning, field dressing, or processing of animals for personal consumption, including fish, wild game harvested through lawful hunting, or livestock raised on-site.

Immediate. A transition between static message displays that is achieved in 2 seconds or less.

Impoundment Yard. A fenced yard or enclosed area where storage of vehicles seized by, and in the custody of, a government agency, are stored for retrieval by the vehicle owner or are sold by proper means by the agency.

Improvement. Buildings, structures and all facilities of a public nature indented for public use – including streets, sidewalks, curbs, gutters, alleys and other public ways, parks, recreational facilities, water, sewage, solid waste disposal and other sanitary systems and facilities.

Infill Development. For commercial or residential parcels shall be defined by the following criteria:

1. One parcel surrounded by urban development on at least three sides (does not have to be directly adjacent to); and
2. Served by existing underground sewer and water utilities.

Infiltration. The process of percolating stormwater into the subsoil.

Interior lot. See "Lot, interior."

Intermittent. A pattern of changing light intensity, other than that achieved with immediate, fade or dissolve transitions, where any message remains static for over 4 seconds.

Intersection. The junction of two streets.

Land Disturbance Activity. Grading, digging, cutting, scraping, or excavating of soil, placement of fill materials, paving, construction, substantial removal of vegetation, or any activity which bares soil or rock or involves the diversion or piping of any natural or man-made watercourse.

Landscape Points System. The point system used for determining the minimum vegetation requirement.

Landscaped Setback. The minimum required landscaping area on private or government-owned property which is adjacent to a property line common to a street right-of-way. Driveways and sidewalks to afford required access shall be allowed to interrupt this required space.

Landscape, Street Tree Area. The landscaped area between property line and the street, within the right-of-way.

Landscaping. Any combination of living plants, such as trees, shrubs, vines, ground covers, flowers or grass; natural features, such as rock, stone, bark chips or shavings; and structural features, including, but not limited to, fountains, reflecting pools, outside art work, screen walls, fences or benches.

Landscaping, Internal. That area that lies within the property lines not covered by buildings, parking, outside storage, sidewalks and driveways.

Landscaping, Xeriscape. A water-saving landscape design that limits turf areas, utilizes mulches, efficient irrigation (often drip or subsurface) and use of native or drought-tolerant plant materials. When done properly, it is as lush and green as traditional landscapes, but has the benefits of lower water use and less maintenance after establishment.

Loading Space. n on- or off-street space for the standing, loading, and unloading of vehicles, people or articles.

Lot. A designated unit of land established by a plat or otherwise as permitted by law, for the transfer of ownership or to be used, developed, or built upon, whether immediate or future.

Low Impact Development (LID). An approach to land development (or redevelopment) that works with nature to manage stormwater as close to its source as possible. LID emphasizes conservation and use of on-site natural features to protect water quality. This approach implements engineered small-scale hydrologic controls to mimic the pre-development hydrologic regime of watersheds through infiltrating, filtering, storing, evaporating, and detaining runoff. The term Green Infrastructure may also be used.

Major Drainageway. Any drainage flow path mapped with an area of special flood hazard on the Flood Insurance Rate Map (FIRM).

Manufactured Home. A structure transportable in one or more sections which, in the traveling mode, is 8 body feet or more in width or 40 body feet or more in length or, when erected on site, is 320 or more square feet, and which is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air-conditioning and electrical systems contained therein; except that such term shall include any structure which meets all the requirements of this paragraph except the size requirements and with respect to which the manufacturer voluntarily files a certification required by the secretary (HUD) and complies with the standards established by HUD. For manufactured homes built prior to June 15, 1976, a label certifying compliance to the standard for mobile homes, NFPA 501, ANSI 119.1, in effect at the time of manufacture is required.

Massage Therapy. A medical service that emphasizes the therapeutic benefits of massage, aiming to address specific health concerns and practiced by a person who holds a massage therapist permit pursuant to chapter 5.52, title 5, of the city code.

Moving Light. The physical change in position of any visible illumination source while lighted or the simulation of movement achieves with a pattern of sequentially illuminating visible illumination sources within close proximity to each other.

MS4 Permit. A state or federal stormwater discharge permit to regulate discharges from municipal separate storm sewer systems (MS4s) for compliance with Clean Water Act regulations; used interchangeably with the term National Pollutant Discharge Elimination System (NPDES) permit and collectively referred to as federal stormwater discharge permit.

Nonfunctional turf grass. An area of living turf grass or lawn that is not used regularly for human recreational purposes or domestic animal use. Nonfunctional turf grass or lawns include Kentucky bluegrasses, fescues, or similar sod-forming grasses requiring ½ inch or more of supplemental watering per week during hot, dry periods.

Nonpoint Source Pollution. Pollution from any source other than from any discernible, confined, and discrete conveyances, and shall include, but not be limited to, pollutants from agricultural, silvicultural, mining, construction, subsurface disposal and urban runoff sources.

Off-premise Sign. Any sign not identified as a "Billboard" and which is used for the purpose of displaying, advertising, identifying, or directing attention to a business, service, activity or place, including products or services sold or offered for sale, on premises other than the premises where such sign is displayed.

Open Space Systems. A system of various types of outdoor space, designed to function as aesthetic, recreation, and ecological support for development. Elements of the open space system can include private, common, or public open spaces.

Owner. The owner of record of a parcel of land, as recorded in the office of the county clerk.

Parapet. The architectural enhancement in the design of the façade that extends ornamental details above a roof line to the extent necessary to screen the roof and roof-top equipment.

Parcel. A contiguous unit of land owned and recorded as the property of the same persons or controlled by a single entity.

Parking Lot. An area other than a street or alley designated for the parking of five or more motor vehicles.

Parking Space. A space specially designed for the parking of a motor vehicle.

Party Wall. A wall common to two or more units which are intended to be individually owned.

Pedestrian. A person on foot or a self-propelled conveyance intended for use of persons with physical impairments.

Person. An individual, firm, corporation, partnership, or association, or any combination of these, or any other legal or commercial entity acting as a unit.

Personal or Non-Commercial Harvest. The customary, non-commercial harvesting, slaughtering, or processing of livestock as an accessory use to a primary residential or standard agricultural operation.

Pre-existing Towers and Pre-existing Antennas. Any tower or antenna for which a building permit or wireless telecommunications permit (WTP) was issued prior to the effective date of this Title,

including permitted towers or antennas that have not yet been constructed so long as such approval is current and not expired.

Public Drainage System. The system of storm sewers, channels, culverts, creeks, flows within public streets, and associated detention and water quality structures owned and maintained by the City of Cheyenne, Laramie County, or the Wyoming Department of Transportation.

Public Land. Land owned, controlled and/or operated by a governmental unit.

Published Notice. A notice provided in accordance with Wyoming Statutes.

Recreational Vehicle (RV). A vehicle or unit primarily designed for human habitation for recreation or travel, which may include a motor home, camper, travel trailer, or park model recreational vehicle.

Redevelopment. The replacement of impervious surfaces on a developed site that is surrounded by urban development on at least three sides. Redevelopment occurs when the existing facilities are demolished and rebuilt or substantially changed through reconstruction. Resurfacing parking lots with no charge in overall dimensions or drainage patterns is not considered redevelopment even if the pavement is completely replaced.

Regional Detention Facilities. A system or parts of a system to control run-off from a defined area within a drainage basin and designed to coordinate with other similar facilities to manage the drainage basin and tributaries, typically considering areas greater than 100 acres or capacities of more than 30 acre-feet or as otherwise specified in a drainage master plan or current Storm Drainage Manual.

Remainder Lot. A lot or tract of land designated on a plat which is not eligible for development, or to service adjacent development, and may be reserved for future platting. A remainder lot shall not be for the purpose of sale, lease, or financing; nor be eligible for development. Remainder lots shall not be required to meet the dimensional standards of the zoning district. Developed properties, excluding land developed for agricultural purposes, are not eligible to be remainder lots. Remainder lot(s) must be referred to as “outlots”, “remainder lots”, or “tracts” on plats.

Right-of-way. Land dedicated and set aside for use by the public, primarily for the right of vehicle or pedestrian travel, but typically designed to include multiple and other public purposes.

Roadway. That portion of a street designed and intended primarily for vehicles.

Sanitary System. A sewer system or systems including mechanisms of collection, treatment and disposal of domestic and/or commercial sewage.

Screening. A feature used to visually separate elements on abutting or adjacent development sites.

Self-Contained Unit. A recreational vehicle equipped with its own water supply, sanitary facilities, and wastewater containment, capable of independent habitation.

Sidewalk. That portion of a street designed and intended primarily for use of pedestrians.

Sign. Any announcement, declaration, demonstration, display illustration or insignia, or other identification, that is visible from any public place or is located on private property and exposed to the public and that directs attention to a product, service, place, activity, person, institution, business or solicitation, including structures that exist to support or enhance the sign.

Sign, Animated. A sign that uses movement or change of lighting to depict action or create a special effect or scene.

Signs, Building Marker. A sign indicating the name of a building, a date and incidental information about its construction, cut into a masonry surface or made of bronze or other permanent material.

Sign, Abandoned. A sign which no longer identifies or advertises a bona fide business, service, owner, product, or activity, and/or for which no legal owner can be found.

Sign, Electronic Message Center. A sign where alphabetic, pictographic or symbolic informational content can be changed or altered on a fixed display surface composed of electrically illuminated or mechanically driven, changeable segments.

Sign, Government. A sign erected and maintained by the United States or state of Wyoming, or any political subdivision thereof, for traffic direction or for designation of or direction to any school, hospital, historical site or public service, property or facility.

Sign, Nameplate. A sign giving only the name, address and/or occupation of an occupant or group of occupants.

Sign, Portable. A sign not permanently attached to the ground or other permanent structure, or a sign designed to be transported, including, but not limited to, signs designed to be transported by means of wheels, signs converted to A- or T-frames, and balloons used as signs. "Portable sign" shall not include umbrellas used for advertising, signs carried by individuals, and signs attached to or painted on vehicles parked and visible from the public right-of-way when such vehicle is used in the normal day-to-day operations of a business.

Site Plan. A plan of the land showing the existing and proposed features for the property.

Static. Having no motion within a particular message or copy displayed on a digital billboard.

Storm Sewer. An underground pipe system that carries stormwater from streets and other surfaces and discharges directly to a pond, stream or river; used interchangeably with the term "storm drain."

Stormwater Management. Anything associated with the planning, construction, maintenance, or regulation of facilities which collect, store, convey or treat stormwater.

Storm Water Pollution Prevention Plan (SWPPP). A written plan required under state and federal stormwater discharge permits identifying measures that will be implemented to minimize the discharge of pollutants in stormwater. Requirements for SWPPPs are specified in state and federal discharge permits. Requirements vary depending on whether the discharge permit is associated with municipal, industrial, or construction activities.

Stormwater Retrofit. A stormwater management practice designed for an existing development site that previously had either no stormwater management practice in place or a practice inadequate to meet the stormwater management requirements of the site.

Stormwater Runoff. Also known as *Stormwater*, means flow on the surface of the ground, resulting from precipitation. Interchangeable terms include drainage and runoff.

Street. Any public way for the movement of vehicular and pedestrian traffic which is an existing federal, state, county or municipal roadway; or a right-of-way shown upon a plat, and approved

pursuant to law, whether improved or unimproved, and may comprise pavement, shoulders, curbs, gutters, sidewalks, parking areas and other areas within the right-of-way.

Street, Arterial. Refers to the functional classification of a street in the entire transportation network, which has considerable continuity over long distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Street, Collector. Refers to the functional classification of a street in the entire transportation network, which has moderate continuity over medium distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Street, Local. Refers to the functional classification of a street in the entire transportation network, which has limited continuity except for short distances, and which is more specifically designed for speeds, volume and applicability according to the context, the standards in these regulations, and other specific transportation plans and policies.

Structure. That which is built or constructed, an edifice, or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner.

Tiedown. Any device designed to anchor a manufactured home or any other accessory building or structure to the ground.

Temporary Use. A use or activity that is intended to occupy the site on a non-continuous basis for more than 14 days.

Tower. Any structure that is designed and constructed primarily for the purpose of supporting one or more antennas for telephone, radio and similar communication purposes, including self-supporting lattice towers, guyed towers or monopole towers. The term includes, but is not limited to, radio and television transmission towers, microwave towers, common-carrier towers, cellular telephone towers, alternative tower structures and any tower support.

Tract. A unit of land established by a plat or otherwise as permitted by law, designated for limited or no development as part of an approved plan for a legitimate public or community purpose and designated for public or common ownership and maintenance.

Traffic-control Devices. Signs, signals, markings, or other approved geometric designs in the roadway approved by the public body or official having jurisdiction for the purpose of regulating, warning, guiding, or calming traffic.

Triple frontage lot. See "Lot, triple frontage."

Unit Space. A designated portion of a manufactured home park for the accommodation of one manufactured home.

Urban Drainage and Flood Control District (UDFCD). The metropolitan Denver drainage organization.

Utilities, Essential Services. Those utility facilities that provide end user services to customers. They include local distribution and collection lines for gas, electricity, water, sewer, telephone or cable TV services throughout neighborhoods and connect with each customer. They consist of cables, wires or pipes with limited capacities and the associated hardware, such as transformers, relays and shut-off valves. They also consist of traffic-control boxes and traffic signal installations.

Utility Facilities. Any utility facility, whether or not regulated by the Wyoming Public Service Commission, not described as an essential service utility.

Wall, Retaining. A physical barrier necessary to prevent erosion and/or retain earth.

Water Quality Capture Volume (WQCV). Represents runoff from frequent storm events such as the 80th percentile storm. The volume varies depending on local rainfall data. The WQCV is based on runoff from 0.6 inches of precipitation (approximately 0.5 inches of runoff).

Water System. A public or private system of providing potable water to a structure for domestic use.

Woonerf. A street designed for use by pedestrian and vehicular traffic, where the pedestrian has the right-of-way.

WyDEQ. The Wyoming Department of Environmental Quality.

1.4.4 Descriptions of Uses of Land and Buildings

This section contains general descriptions associated with the uses of land and buildings. It is organized according to categories of uses and specific types of uses within each category. These categories and types correspond to the Use Table in Article 5, Zoning Regulations. Where a use appears to meet two or more descriptions or where a use is not described, the Director shall make a determination. If a use meets all of the characteristics of a use category and use type, or is so similar to a described use type as to create no anticipated differential impact, the Director may interpret that the described use includes the additional use. In making this determination, the Director shall compare: (a) the intensity and scale of the use relative to the site; (b) the typical site and building designs associated with the use; (c) the functional or operational characteristics and the potential impacts of the use on adjacent property; and (d) the potential contribution of the use to the overall character of the district or districts in which the comparable use is allowed. All other uses which cannot be interpreted in this manner are different from the described uses, are not anticipated by these regulations, and may only be allowed by a zoning text amendment.

a. ***Residential Uses.*** The Residential use category is for all types of dwelling units used for permanent residence, including a variety of lot types, building types, and unit types, that may vary in the kind and classes of buildings based on the character of the neighborhood.

   Attached Dwelling ("Townhouse" / "Rowhouse"). A Residential use in a building designed with a series of attached principal dwelling units separated by a single common wall. Each unit is typically situated on its own fee simple lot where party walls are used, but buildings or grounds may be owned in common. Each unit has the same orientation and front façade, and has its own private entrance to the exterior of the structure.

   Detached Dwelling. A Residential use in a detached building designed as a single principal dwelling unit and situated on its own fee simple lot.

   Semi-attached Dwelling ("Duplex"). A Residential use in a detached building designed as a "paired house," matching the appearance of a house or townhouse. A duplex may be situated on its own fee simple lot, but each unit of a side-by-side paired house shall meet all requirements to be platted on individual lots. Two units in the same building in the form of "flat-over-flat" duplex shall be considered an Accessory Dwelling, not a Semi-attached Dwelling.

Cottage Lot. A Residential use utilizing detached dwellings, semi-attached dwellings, or attached dwellings designed to face a common area (typically open space) with other shared facilities (such as shared public street access, shared parking, shared trash collection, etc.). Individual dwelling units may be on fee simple lots, a condominium, or on one larger ownership parcel. A cottage lot is also known as "bungalow court" or "cottage court". Cottage lots are subject to the provisions of UDC Section 6.6.5.

Group Housing. A residential use, Group Housing is the provision of in-home, 24-hour, 7-days a week custodial care for from 1 to 6 individuals living together as a single housekeeping unit in a single-family, detached dwelling unit. This maximum number excludes staff. This use does not include a household where custodial care is provided by a family member to from 1 to 6 persons in a single-family, detached dwelling unit. Custodial care includes the provision of in-home personal assistance, housekeeping service, supervision, and limited medical assistance to a resident or residents. Examples of Group Housing include, but are not limited to, homes for elders and disabled or mobility-impaired persons, homes for rehabilitation from drugs or alcohol addiction, or homes for formerly incarcerated persons. The Group Housing use is subject to the provisions of Section 5.7.5.d and e of the UDC.

Dormitories. A Residential use in a building that provides sleeping accommodations for a number of people.

Multi-dwelling Building ("Apartment"). A Residential use in a building designed for more than two principal dwelling units and situated on a single fee simple lot. This building type includes a variety of variations based on the permitted building scale, including "stacked flats" (3-story/tri-plex), "six-plex" (paired stacked flats), or larger apartment buildings.

Live/Work. A primarily residential use in a building designed for two principal uses, where a portion is designed for residential dwelling use, and a portion is designed for a limited non-residential use to support the occupation or vocation of the resident of the dwelling unit. The non-residential portion is limited to the 1st story and less than 50% of the total floor area of the building. The building is situated on its own fee simple lot but may be attached or detached based on zoning district standards and context.

Mixed-use Dwelling. A Residential use in a building designed for a mix of uses with office or retail on the 1st story / street-front and residential uses on the upper stories where the dwelling units are not accessory to the non-residential uses. Mixed-use buildings may be either small- or large-scale, with larger scale buildings, depending on the context and zoning district standards, and typically being broken into multiple fee simple lots with party walls, but the dwelling units may be owned in fee simple, as condominiums, or apartments.

Accessory Dwelling. A separate dwelling unit that is associated with, incidental to, and subordinate to another dwelling unit as the principal use, and located on the same lot as the principal dwelling (commonly referred to as "Basement Apartment" or "Garage Apartment"). The Accessory Dwelling may take forms such as a stand-alone unit in an accessory building, a small unit added onto the principal building, or a "flat-over-flat" duplex.

Urban Loft Building. A residential use in a building designed for more than two principal dwelling units and situated on a single fee simple lot. This building type contemplates a

taller multifamily building, often with parking structured or at grade with the building above, located in a walkable, mixed use context.

Manufactured Home Park. See "Manufactured Housing Park".

Manufactured housing parks. An area of land under one fee ownership, where designated spaces for manufactured homes are rented for use as a principal dwelling unit, and which may provide associated facilities for common use.

Campground. A Service Use accommodating overnight stays in tents, cabins, or other non-motorized shelters.

Combined Manufactured Housing Park. A Residential Use consisting of a manufactured housing park that, in addition to accommodating manufactured homes, is duly licensed to permit recreational vehicles to occupy independent spaces on the same site. Such facilities are deemed nonconforming uses and shall not be established in the City.

Recreational Vehicle Park. A Service Use providing accommodations for recreational vehicles, travel trailers, motor homes, dependent travel units, and park model recreational vehicles.

b. ***Civic Uses.*** The Civic use category includes uses serving a broad and general public and community interest to enhance daily cultural, social or recreation opportunities for area landowners and residents. This category is based on the need of different kinds and classes of buildings in close proximity with other uses, which can be integrated in to these areas with the appropriate level of civic design. The Civic use category may contain uses that are either public and accessible to all citizens; common and accessible by rights associated with ownership; or private and accessible by membership or general association.

Neighborhood Assembly (<350 maximum occupancy). A Civic use that conducts organized services, assemblies, or programs on a periodic or occasional basis, primarily for the convenience, entertainment, education, and social or spiritual welfare of nearby residents. Neighborhood Assemblies typically have buildings and supporting facilities designed for a capacity of no more than 350 people for any one event. Common examples include meeting halls, neighborhood association club houses, or smaller neighborhood churches.

Community Assembly (350 -1000 maximum occupancy). A Civic use that conducts organized services, assemblies, or programs on a periodic or occasional basis, primarily for the convenience, entertainment, education, and social or spiritual welfare for citizens in the general vicinity. Community Assemblies typically have buildings and supporting facilities designed for a capacity of no more than 1000 people for any one event. Common examples include community centers, museum, or large churches. [For larger assemblies see Entertainment, Venue].

Cemeteries. A Civic use where land is used for the burial of the deceased, both human and animals, and dedicated for internment purposes, including columbaria, crematoria, mausoleums and mortuaries when operated in conjunction with and within the boundary of such cemetery.

Primary and Secondary Schools. A Civic use where buildings and facilities are used for the education and instruction of K through 12 students.

Educational Facilities. A Civic use where buildings and facilities are used for the education and instruction of post-secondary students, non-traditional students, or continuing education for adult or general population.

Community Athletic Field. A noncommercial facility for active outdoor recreation and organized sports, including a facility which is an accessory use to a school, but excluding any facility with lighted fields or permanent buildings for refreshment stands, locker rooms or shower facilities.

Developed Athletic Field or Stadium. A facility for active outdoor recreation and organized sports which includes lighted fields, permanent grandstands, or permanent buildings for refreshment stands, locker rooms or shower facilities.

c. ***Service Uses.*** The Service use category is for businesses engaged in the exchange of professional skills, advice, personal care or other resources, and the nature of the exchange generally requires frequent interactions with the clients, customers or patrons on the premises, and where lots or buildings may require access or exposure to the public-at-large.

Service Business – Limited. A Service use that primarily supports adjacent residential uses by providing daily services for the convenience of residents, and involving less than 3,000 square feet of gross leasable area. Examples include post office, bank outlet, barber shop or beauty salon, tailor, or other similar services.

Service Business – General. A Service use that provides support for adjacent residential uses or businesses which may involve more than 3,000 square feet of gross leasable area. Examples include copy centers, large banks, or any other similar services that exceed the scale of Service Business – Limited.

Assisted Living Facility / Nursing Home. A Service use / institutional occupancy providing residential accommodations for 7 or more persons to meet the needs of the aging, semi-dependent or dependent population in a residential environment, together with recreation and support services and facilities for the benefit of the residents and where any permanent on-site staff is accessory to the primarily residential use. On-site skilled nursing care or medical facilities may be provided. An Assisted Living Facility/Nursing Home use is subject to the provisions of Section 5.7.5 of the UDC. An Assisted Living facility/Nursing Home use, pursuant to this definition, does not include a Group Housing use or site. An Assisted Living Facility/Nursing Home operation may take place within a residential or a non-residential structure.

Animal Care, Kennel. A Service use where domestic animals are boarded, bred or sold as a primary business.

Animal Care, Hospital / Clinic. A Service use where animals are admitted for examination, treatment, or health care by a doctor of veterinary medicine, which may include kennels, runs or other accessory accommodations.

Family Child Care Home (FCCH). A Service use where preschool care and education is provided for up to 10 children within the owner's primary residence. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.

Family Child Care Center (FCCC). A Service use where preschool care and education is provided for up to 15 children within the owner's primary residence. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.

Child Care Center (CCC). A Service use where preschool care and education is provided for children on a regular basis not located in any person's residence.

Emergency Shelter. A facility, which provides shelter or overnight accommodations and incidental support services for persons experiencing homelessness and/or families on a short-term basis.

Entertainment, Indoor Recreation Facility. A Service use where facilities for indoor sports, entertainment, or similar recreation opportunities for participants and spectators are offered. Examples of uses include bowling alleys, pool halls, roller skating rinks, swimming pools, movie theaters, video or similar gaming venues, racquetball courts, or fitness clubs.

Entertainment, Outdoor Recreation Facility. A Service use where facilities for outdoor sports, entertainment, or similar recreation opportunities for participants and spectators are offered. Examples include racetracks, driving ranges, music performance venues, or other outdoor entertainment venues.

Entertainment, Venue. A Service use where music concerts, floor shows or other forms of entertainment, performances or presentations by persons are provided indoors for guests or the general public, which may include accessory dining, bar, and similar refreshment services. Examples include concert halls, theatrical performance art centers, dinner theaters, other food or beverage-serving establishments providing live entertainment venues, banquet halls, or auditoriums.

Entertainment, Amusement, Recreation Services—Other. A Service use primarily engaged in the operation of indoor or outdoor entertainment, amusement and recreation services not elsewhere classified, such as indoor or outdoor shooting range, amusement parks, or similar sports or recreation venues.

Gaming Center. A Gaming Center is an establishment primarily dedicated to wagering on live or historic horse races through pari-mutuel or electronic systems, or other lawful wagering activities conducted in accordance with state or federal law. The use includes dedicated wagering areas, electronic terminals, and administrative space, often featuring ancillary amenities such as lounges, food and beverage service, and the on-premises sale of alcoholic beverages. This definition specifically excludes family-style game centers, arcades, or venues where the primary use consists of amusement-only or skill-based machines. Furthermore, it does not include incidental or temporary fundraising activities such as nonprofit bingo, charitable raffles, or similar occasional social gaming events that do not constitute regulated professional gambling.

Lodging, Bed and Breakfast. A Service use where up to six guest rooms are rented, generally for short-term occupancy for sleeping, together with limited facilities for the accommodations of guests in a home-like atmosphere.

Lodging, Hotel or Motel. A Service use where six or more guest rooms are rented, generally for short-term occupancy for sleeping, together with incidental meeting rooms, restaurants and recreation facilities for the primary benefit of the guests.

Medical Care, Clinic. A Service use where physicians, dentists, or other health care professionals are associated for the purpose of carrying on their professions. A health clinic may include a dental or medical laboratory, after hours emergency care, but it may not include in-patient care or operating rooms for major surgery.

Medical Care, Office. A Service use where physicians, dentists, or other health care professionals carrying on their professions. A medical office may include a dental or medical laboratory, but may not include in-patient care or operating rooms for major surgery and may not be open for after-hours emergency care.

Medical Care, Hospital. A Service use providing health services, primarily for inpatients, and medical or surgical care of the sick or injured, including as an integral part of the institution such related facilities as laboratories, outpatient departments, training facilities, central service facilities and staff offices.

Mini Storage. A Service use where a building or group of buildings in a controlledaccess and fenced compound that contains varying sizes(s) of individual, compartmentalized and controlled-access stalls or lockers for the storage of a customer's goods or wares. Mini Storage may include individual units accessed from inside of a building offered for rent or lease for the storage of personal property. It may also include parking areas for the storage of vehicles, trailers, recreational vehicles, boats, snow mobiles and other similar items as an accessory use. Outdoor storage, or the storage of junk, explosives, or flammable materials and other noxious or dangerous materials are specifically prohibited.

Storage, Yard. A Service use where exterior yards are leased for the outdoor storage of large-item personal property such as boats or recreational vehicles.

d. ***Employment Uses.*** The Employment use category is for businesses engaged in administrative, clerical, and professional operations and support, where products or services are of the nature that generally, when compared to Retail Use Types, do not require daily on-premise interactions with the clients, customers or patrons, and where lots and buildings are not primarily designed to maximize exposure to the public-at-large.

Home Occupation. A business which is carried on entirely within a legal or legal non-conforming dwelling or allowed accessory building, and which is clearly incidental and secondary to the use of the premises as a dwelling.

Office - Limited. An Employment use which is not an accessory to another use, but limited individual units of gross leasable area are less than 3,500 square feet, and where each owner or tenant typically employs less than 20 employees on premises. Examples include small-scale professional service offices such as accountants, architects, insurance, law, real estate, or other similar businesses which can operate within the unit square footage and employee limits of this category.

Office - General. An Employment use where individual units of gross leasable area are between 3,500 and 20,000 square feet, and where each owner or tenant typically employs between 20 and 100 employees on premises. Examples include large professional service offices such as accountants, architects, insurance, law, real estate, or other similar businesses which exceed the Office - Limited category, or other moderate size business or corporate employment operations.

Major Office or Office Complex. An Employment use where individual units of gross leasable area may be more than 20,000 square feet in a single building or group of buildings, and each owner or tenant may typically employ more than 100 employees on premises. Examples include major professional service firms or large corporate offices.

e. ***Commercial Uses.*** The Commercial use category is for businesses engaged in the exchange of merchandise for general consumers, and nature of the exchange generally requires frequent interactions with the clients, customers or patrons on the premises, where lots or buildings are primarily designed for exposure to the public-at-large.

Convenience Retail / Corner Store (<2k). A Commercial use primarily engaged in the small-scale sale of household merchandise and general consumer products and involving less than 2,000 square feet of gross leasable area. Convenience Retail / Corner Store uses are characterized by target market areas of less than 1/4 mile radius for most of its on-premise sales or are associated accessory to an employment or service business.

Neighborhood Retail (<5K). A Commercial use primarily engaged in the small-scale sale of household merchandise and general consumer products and involving less than 5,000 square feet of gross leasable area. Neighborhood retail uses are characterized by a target market area of less than ½ mile radius for most of its on premise sales.

General Retail (5K - 25K). A Commercial use primarily engaged in the sale of household merchandise, specialty merchandise, and consumer products and involving between 5,000 and 25,000 square feet of gross leasable area. General Retail uses are characterized by a target market area of less than 1 mile radius for most of its on-premise sales.

Large-scale Retail (25K - 100K). A Commercial use primarily engaged in the sale of household merchandise, specialty merchandise or general consumer products and involving between 25,000 and 100,000 square feet of gross leasable area. Large-scale Retail uses are characterized by a target market area that may be greater than 1 mile radius for the on-premise component of its sales.

Warehouse Retail (> 100K). A Commercial use primarily engaged in the sale of household merchandise, specialty products, general consumer products, or wholesale products and involving greater than 100,000 square feet of gross leasable area. Warehouse Retail uses are characterized by a target market area that may be more than 1 mile radius for most of its sales.

Grocery Store (<45K). A Commercial use engaged in the retail sale of a broad range of food products and limited household products for consumption off premises, although some limited areas may be dedicated to the on-premise sale and consumption of food. A grocery store involves less than 45,000 square feet of gross leasable area and is characterized by a target market of less than 1-mile radius.

Supermarket (> 45K). A Commercial use engaged in the retail sale of a broad range of food and household products for consumption off premises, although some limited areas may be dedicated to the on-premise sale and consumption of food. A supermarket typically involves more than 45,000 square feet of gross leasable area and is characterized by a target market of greater than 1-mile radius.

Outdoor Sales, Limited. The limited display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use. This display

is further limited by the following: (1) it only occurs during regular business hours and is brought indoors; (2) is limited in extent to less than 10% of the entire merchandise area of the Commercial use; and (3) it is limited to seasonal sales or events lasting no longer than one-week at a time with at least 4 weeks between consecutive events.

Outdoor Sales, Seasonal. The limited display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use. This display is further limited by the following: (1) it only occurs during regular business hours and is brought indoors; (2) is limited in extent to less than 20% of the entire merchandise area of the Commercial use; and (3) it is limited to seasonal sales or events lasting no longer than one month at a time with at least 2 months between consecutive events.

Outdoor Sales, Event or Display Area. The display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use that does not meet the limitations of Limited or Seasonal Outdoor Sales, and which may require areas to be designed and dedicated for display when part of the permanent operations of an interior retail business. Examples include lumber yards and garden centers.

Outdoor Sales. The display and sale of merchandise where the primary business is generated by merchandise displayed permanently and year round on an exterior portion of the site. Examples include automobile sales and implement sales.

Bars. A Commercial use primarily engaged in serving alcoholic beverages for consumption on-premises. Any food or entertainment services are generally secondary or accessory to the business.

Liquor Store. A Commercial use engaged primarily in the retail sale of alcoholic beverages for consumption off-premises. The sale of food or accessory beverage supplies are generally secondary or accessory to the business.

Automobile Service Repair. A Commercial use engaged in the repair, maintenance, condition, detailing, or cleaning of motor vehicles and including the accessory sales of lubricants, parts, or accessories. Services also include any modification, assembly or painting of motor vehicles and repair of internal combustion engines.

Automobile Service Station – Limited. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services. This use is limited to no more than 2 fuel pump islands and no more than 8 fueling stations.

Automobile Service Station – General. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services, or accessory Convenience Retail. This use is limited to no more than 4 fuel pump islands and no more than 16 fueling stations.

Automobile Service Station – Large-scale. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services, or accessory Convenience Retail. This use may have more than 4 fuel pump islands and more than 16 fueling stations.

Food Service – Limited (< 2K). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on-site and including less than 2,000 square feet of seating area.

Food Service – General (2K – 4K). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on-site and including between 2,000 and 4,000 square feet of seating area.

Food Service – Large-scale (> 4k). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on site and including more than 4,000 square feet of seating area.

f. ***Industrial Use Category.*** The Industrial use category is for businesses engaged in manufacturing, fabrication, warehousing, processing, wholesale or disposal of goods, products and component parts, and services related to these businesses. These uses typically belong in a special district due to their inability to blend with the uses from other use categories, except when occurring at the smallest scale.

Data Center. A use consisting of buildings or structures specifically designed or modified to house networked computers and data and transaction processing equipment and related infrastructure support equipment, including power and cooling equipment. A data center may be used to provide data and transaction processing services, outsource information technology services and/or computer equipment colocation services. A data center may also include buildings or structures that support the operation of the data center including retrofit buildings, warehousing for logistics, independent network buildings, buildings for support staff, and emergency generators. A Data Center shall not include activities which consistently produce noise discernable at the property line. Should a Data Center produce noise discernable at the property line, it shall be classified as an Industrial use.

Limited Industrial. An Industrial use where small-scale activities produce no byproducts such as smoke, odor, dust or noise discernable from the outside of the building in which it is located. Individual facilities typically occupy less than 10,000 square feet of gross leasable area and distribution and deliveries are commonly made by general consumer delivery services, requiring no significant truck access. A retail, showroom, or service component is often associated with the use. Examples include artist studios, metal and wood shops, arts and crafts manufacturing, small appliance or machine repairs, or other small-scale assembly of finished parts or products from previously prepared materials.

Moderate Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernable from outside of the building in which it is located. Distribution and deliveries can occur from general consumer delivery services or limited commercial truck access. Examples include research labs or facilities, small electronics or computer assembly and manufacturing, furniture assembly.

General Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernable from beyond the property boundary. Operations may require commercial vehicle access for distribution and deliveries. Examples include non-animal food processing, commercial warehouses or wholesale distribution centers or energy industry services.

Industrial. An Industrial use capable of producing significant byproducts discernable from outside the building and property including noise, odors, or other potentially offensive materials. Operations may require substantial commercial vehicle access for distribution and deliveries. Examples include food-processing involving animals (large-scale), metal or chemical manufacturing, and data centers which consistently produce noise discernable at the property line.

Limited Outdoor Storage. A use where less than 50% of the lot is used to store equipment and other materials customarily used in the operations associated with the principal use of the property in an unenclosed area.

Outdoor Storage. A use not classified as Limited Outdoor Storage where property is used to store equipment, vehicles, or other materials in an unenclosed area.

Impoundment Yards. An industrial use where a government agency establishes and operates a fenced yard or enclosed area where storage of vehicles seized by, and in the custody of, the government agency, are stored for retrieval by the vehicle owner or are sold by proper means by the agency.

Salvage Yards. An Industrial use where materials are extracted from unusable equipment, structures, or vehicles and stored for future use or resale.

Junk Yards. An Industrial use where waste or used material are bought, sold, exchanged, stored or processed for disposal.

Pet Crematory. An Industrial use where land and buildings are used for the preparation and processing of deceased domestic animals.

Air Cargo Terminals. An Industrial use where land and buildings are used for the storage of airplanes, airplane cargo or other facilities associated with air transportation or air shipping.

Aircraft Sales, Repair, Service, Storage. An Industrial use where land and buildings are used for keeping inventory related to aircraft sales or for the storage and maintenance of aircraft.

Railroad Yards and Maintenance Buildings. An Industrial use where land and buildings are used for the storage of rail cars, rail cargo or other facilities associated with rail transportation or rail shipping.

g. ***Public Service Uses.*** The Public Service use category is for businesses or government entities engaged providing technical and operational services that serve the general public and community interest to enhance general health, safety, welfare and convenience for landowners and residents, and that serve interests beyond the specific site or facility. This category is based on the need of different kinds and classes of buildings in close proximity with other uses, which can be buffered from the adjacent areas they serve with the appropriate site design, or alternatively which can be located in special purpose districts and still serve the public interest.

Commercial or Public Parking Facility. A Public Service use where land and buildings are used for hourly or daily parking of passenger vehicles that serves other uses, sites and buildings in the vicinity. The parking services may be owned by the government or owned and operated as a business.

Government Facility. A facility or area of land controlled and/or operated by a government entity to aid in providing a service to the citizens under the jurisdiction of that entity.

Military. A Public Service use where land and buildings are used for operations of the United States Armed Forces.

Recycling Services. A Public Service use where land and buildings are used for the public drop-off, storage, and packaging of recyclable materials. Processing may occur on site, or materials may be shipped to other industrial sites for further processing.

Transportation Facilities. A Public Service use engaged in the business of offering transportation services to the public, such as airport terminals, bus stations, train stations, taxi stations, parking garages, bicycle depots or similar facilities for common storage personal vehicles or common boarding of public vehicles.

Utility Stations. A Public Service use where land is used for the concentrated location of fixed equipment necessary to serve adjacent areas with utility service, including other accessory buildings and facilities essential to the operation of the equipment.

h. ***Agricultural Uses.*** The Agriculture use category is for uses that are commonly associated with an agrarian or rustic lifestyle, and which demand little or no public infrastructure or services.

General Agriculture. The production of grain, animals, food and fiber; the science and art of farming and ranching; ~~and~~ the work of cultivating the soil, producing crops and raising livestock; and the small-scale, intermittent harvesting and processing of livestock raised primarily on the premises. General Agriculture specifically excludes ~~concentrated feeding operations where swine are confined, fed and maintained for 45 consecutive days or more in any 12-month period.~~ Concentrated Feeding Operations. Any agricultural use that exceeds the thresholds established by Gardens and Homemade Foods shall be considered General Agriculture.

~~*Limited Agriculture.* The production of grain, animals, food and fiber on a small scale where any impacts on potential adjacent property from storage, operations, and equipment can be internalized into the site or buffered from abutting areas, typically not occurring on lots or parcels larger than 10 acres.~~

Gardens and Homemade Foods. Use of a property to grow, harvest, prepare or process any food or drink products that does not produce more than ten thousand (10,000) individual food or drink products annually and does not exceed ten thousand dollars ($10,000.00) in gross revenue annually from the food and drink products. Gardens and Homemade Foods shall include livestock if permitted in the zone district by operation of municipal code. Examples include small residential gardens, community gardens, and small-scale agricultural operations on larger parcels.

Agricultural Equipment ~~and Supply~~ Sales. An Agriculture use where the land and buildings are used for retail sales of equipment and materials used for agricultural-related land uses, and accessory servicing of agriculture equipment.

Agriculture Product Sales / Farmers Market. An Agriculture use where land, ~~and~~ trucks, trailers, or buildings are used for the retail sale of raw agricultural products ~~and operated without any additional or permanent site facilities than are otherwise associated with agriculture use.~~ in accordance with any applicable state and federal regulations. Road-side

stands, ~~truck sales, or barn sales~~ food stands, and sales from trucks or trailers are examples of such uses. ~~, however the intensity and frequency of such sales shall be so that no additional parking, roads, structures, warehouses, or other storage facilities are necessary on the site.~~ This use involves less than 2,000 square feet of gross leasable sales area.

Agritourism. A commercial enterprise that links agricultural production with tourism, inviting visitors to working farms, ranches, or agricultural businesses. This use includes activities such as pumpkin patches, corn mazes, petting zoos and similar uses.

Arenas and Show Barns. An Agriculture use where the land and buildings are used for show or sale of livestock, rodeos, and where the public can attend these and other related activities.

Commercial Stables. An Agriculture use where land and buildings are used for the business of boarding horses, donkeys, mules, burros, llamas or other similar ~~equine~~ animals.

Nurseries, Landscaping. An Agriculture use to grow plants of any kind for transplanting to another location or for sale as live plants rather than as crops, including the sale of related equipment and supplies.

Concentrated Animal Feeding Operations and Slaughterhouses. An Agriculture Use where livestock are confined, fed and maintained for forty-five (45) consecutive days or more in any twelve (12)-month period, or where livestock are harvested as a principal use. Concentrated Feeding Operations apply only to properties with greater than one (1.0) animal unit per acre. Slaughterhouse shall not include personal or non-commercial harvest or incidental cleaning and processing of animals.

2.2.3 Site Plan

a. ***Intent.*** The site plan process is intended to coordinate development projects with public improvements and with adjacent sites. Specifically it is intended to demonstrate that new development meets the development and design standards of these regulations.

b. ***Applicability.*** An application for a site plan shall be submitted by the owner or authorized agent where any of the following occur:

1. Any change of use or a new building.
2. Alterations to the site affecting over 15% of the nonbuilding area of the site (examples include changes to parking, or open space and landscape areas).
3. Any other development activity or change of use that triggers applicability and compliance with any of the Design Standards in Article 6.
4. Any other on-site development activity or change of use that triggers improvements in the public right-of-way and applicability and compliance with any of the Standards in Article 4.
5. No site plan is required for:

(a) single ~~family, duplex, or townhouse~~ Detached Dwelling, Accessory Dwelling Unit, Duplex, or Townhouse development, except ~~when associated with~~ the common lots associated with Cottage Lots; ~~or a Regulating Plan or Development Master Plan.~~

(b) limited business operations occurring in a single-unit residential property, including Group Housing, Live/Work if the non-residential use is not required to have a site plan, Family Child Care Home (FCCH), Family Child Care Center (FCCC), and Home Occupations;

(c) Agricultural uses which are not expected to have significant customer impacts, including Nurseries, Landscaping; Gardens and Homemade Foods; and General Agriculture (if no on-site sales are proposed);
(d) Cemeteries;
(e) Military mission-oriented facilities;
(f) Upon involuntary annexation into the City of Cheyenne existing agricultural operations and properties are granted grandfather status to continue operating as nonconforming uses.

c. ***Specific Procedures.*** An application for a site plan has the following specific procedures:

1. *Pre-application Conference.* A pre-application conference is not required but is recommended. The pre-application conference may be used to discuss design and development concepts, applicable standards, and application requirements and procedures.

2. *Staff Review.* Upon submittal of a formal application, staff will conduct an internal review and may forward copies of the application to any pertinent external agencies for review and comment.

   (a) *Complete Applications*. Within 7 days of submittal of the application, staff shall determine whether the application is complete according to official application requirements. Staff shall notify the applicant in writing of any deficiencies in incomplete applications giving directions and deadlines to cure the deficiencies. Staff shall schedule complete applications for formal internal review subject to the criteria in this section.
   (b) *Posted Notice*. Not Required.
   (c) *Final Decision*. Upon review according to the criteria in this section, and between 7 and 30 days of the determination of a complete application, the Director shall take one of the following actions:
      (1) Approve the application;
      (2) Approve the application with modifications or conditions. Modifications or conditions shall only be to better meet the standards and review criteria; or
      (3) Deny the application and state the specific reasons for denial.

3. *Effect of Decision.* The decision of the Director is the final decision and shall be given to the applicant in writing. Approval of the application shall be valid for 2 years. Any application that has not been acted upon within 2 years from approval shall be void. Denial of the application shall prohibit any activity on the plan, except that an application may be submitted to correct any specific deficiencies in the denied plan. The final decision may be appealed to the Board according to the criteria and procedures for appeal of an administrative decision in Section 2.3.3.

4. *Modifications to Site Plans.* The holder of an approved site plan may request a modification to the Approved Plan or the conditions of approval by submitting amended documents to the department. The amended documents shall be filed and processed in accordance with the procedures for an initial site plan review submittal.

d. ***Review Criteria.*** In reviewing and making decisions on a proposed site plan approval, the Director shall use the following criteria:

1. The proposed application is consistent with any approved plat.

2. The proposed application is adequately served by public services, or where not presently adequately served such service is either proposed in association with the plan or will be provided in coordination with development through capital improvements projects.
3. The proposed application supports the Intent and Applicability statements of the proposed zoning district, and meets and achieves the Design Objectives of any specific standards. Any proposed relief from applicable standards shall be done according to the procedures and criteria offered in different sections of these regulations.
4. The proposed application is consistent with any previously approved Regulating Plan or Development Master Plan. Minor deviations from those plans shall only occur as otherwise authorized by these regulations or as authorized in those specific plans.
5. The proposed application contains no public health, safety or general welfare concerns that would warrant further consideration of this application by other authorities.
6. Any review and recommendations of other reviewing bodies supports these findings

5.7.2 Home Occupations

In districts where home occupations are allowed, they shall meet the following standards in addition to all other lot and building standards for the district.

a. Home occupations include, but are not limited to, arts and crafts-making, tailoring or seamstress services, one or two- person professional offices (medical, insurance, law, etc.), music instruction and wholesale/catalogue sales.

b. Home occupations are intended to allow limited business activity from the home but shall not alter the character of the neighborhood.

c. Additional off-street parking may be required for the home occupation business if more than three clients per day are expected to visit the business. No additional parking spaces shall be provided in the front yard setback (or within the side yard setback if the property is a corner lot). Where needed additional parking would alter the character of the neighborhood the home occupation shall be prohibited.

d. There shall be no offensive noise, vibration, smoke, dust, odors, heat or glare noticeable at or beyond the property line.

e. No exterior storage of materials or equipment is permitted. No storage of motorized vehicles or trailers associated with the business may be in the public right-of-way.

f. Signage will be limited to one non-illuminated sign not more than three square feet in area per home.

g. No retail sales are permitted from the site other than incidental sales related to services provided.

h. Not more than one employee or co-worker other than the permanent resident(s) can work on the site.

i. An “in-home” business operating from a residential dwelling within shall be registered in the home occupation data base, administered through the City Planning and Development Department and all applicable registration fees shall be paid.

j. Specific Exclusions. The following businesses shall not be allowed as home occupations:

1. Automobile Service Repair, however automobile detailing and/or cleaning shall be allowed as a home occupation with the following additional restrictions:

   (a) No more than three customers per day.
   (b) No more than one customer vehicle parked at the property and cannot be parked in the street at any time.
   (c) Vehicles that are being serviced must be parked on the property and cannot be parked in the street at any time.

2. Beauty parlors/salons, nail salons and barber shops if employing anyone other than the permanent residents of the property;

3. Animal grooming salons if employing anyone other than the permanent residents of the property;

4. Boarding kennels;

5. Body piercing/body art/tattoo art if employing or apprenticing anyone other than the permanent residents of the property;

6. Massage Therapy if employing anyone other than the permanent residents of the property.

k. Specific Allowances.

1. Mobile Service Providers Permitted at Client Residences. Certain businesses that involve providing services at a client's home are permitted to operate at the client's residence and are not subject to home occupation regulations at that location provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include house-call veterinarians, mobile massage therapists, mobile pet groomers, and similar providers.

2. Office-Only Use for Off-Site Businesses. A business that is not typically permitted to operate as a home occupation may be allowed if the home is used exclusively for office-related functions and no clients, customers, employees, or business activities take place at the home provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include administrative work, scheduling, bookkeeping, or storage of vehicles or materials related to businesses that operate off site like food trucks, lawn care businesses, snow removal services, etc.

3. Garden and Homemade Foods. Garden and Homemade Foods, including personal or non-commercial harvest, and incidental cleaning and processing of animals are exempt from requiring a home occupation if the Garden and Homemade Foods are conducted without a defined business entity and there are no on-site sales. Garden and Homemade Foods conducted using a defined business entity or with on-site sales is required to receive home occupation approval.

EXHIBIT B

Changes to UDC 5.1.4 Districts and Uses in context

5.1.4 Districts and Uses

Uses have been grouped in general categories, wherever possible. The categories are meant to allow discretion in determining permitted uses. Some uses are more specifically listed because of anticipated impacts associated with the use which warrant special treatment with respect to which district they are allowed in or special review procedures and standards that make the use compatible with certain districts. These cannot be included in the general categories and they require the approval process as indicated. Applicants and staff will need to work closely together in determining the appropriate category for a specific use. Uses are allowed in various zoning districts as either "permitted by right" (P), "permitted after administrative review" (A), "permitted after conditional discretionary review" (C), or "permitted after special use review" (S) as indicated in Table 5-1. Uses, including those 'permitted by right', typically require site plans and building permits to be lawfully established. The procedures and general criteria for these reviews are included in Article 2.

Table 5-1: Zoning District Uses

Zoning Districts / *Category of Uses / Specific Uses*	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS
Residential Uses																					
Detached Dwelling	P	P	P	P	P	P	P	P	P			P				P	P				P
Semi-attached Dwelling ("Duplex")				P	P	P	P	P	P			P				P	P				P
Attached Dwelling ("Townhouse")					P	P		P	P			P				P	P				P
Cottage Lots				C	C	C	C	P	P			P				P	P				P
Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C			P
Dormitories					C	A						P				P	P				P
Multi-dwelling Building ("Apartment")					C	P		P/C	P		C					P/C	P	P			P
Live/Work					C	P		C	A	P	P	P				P	P	P	C		P
Mixed-use Dwelling										P	P	P				P	P	P	C		P
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A				P
Urban Loft Building									C	P	C	C				C	P				P
Manufactured housing parks		C		C	C	C															P
Civic Uses																					
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A	C		P
Community Assembly (350 - 1000 maximum occupancy)										A	A	P	C		C	A	A	A	C		P
Cemeteries	A									A	A	P	C		C	A	A	A			P
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A	C		P
Educational facilities											P	P			P		A	A	C		P
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A	P		P
Developed Athletic Field or Stadium											C		C		C		C	C	P		P
Service Uses																					
Service Business - Limited										P	P	P				A	P	P	P		P
Service Business - General										C	P	P				C	C		P		P
Assisted Living / Nursing Home	C	C	C	C	C	A	C	C	C	C	C				P	P	P	P			P
Animal Care - Kennel	P	C									P		P						P		P
Animal Care – Hospital / Clinic	C	C								C	P	C					C				P
Family Child Care Home (FCCH)	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P			P
Family Child Care Center (FCCC)	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P			P
Child Care Center (CCC)	A	C	A	C	C	C	C	C	C	P	P	P				C	P	P	P		P
Emergency Shelter											P		C								
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P	P		P

Entertainment, Outdoor Recreation Facility	C	C	C	C	C	C	C	C	C	C	C	A	C	C	A	C	C	C	P		P
Entertainment, Venue (1000+ maximum occupancy)	C	C	C								A	A	C		A		C	C	P		P
Entertainment, Amusement, Recreation—Other	C	C	C								C	P	C	C	C		C	C	C		P
Gaming Center											S	S					S				
Lodging, Bed and Breakfast	P	A	A	C	C	C	C	A	P							P	P	P			P
Lodging, Hotel / Motel											P	P					P	P	P		P
Campground	C	C											P						C		P
Recreational Vehicle Park	C	C											P						C		P
Medical Care, Clinic and Office										P	P	P				C	P	P	P		P
Medical Care, Hospital															P			P	P		P
Mini Storage					C	C					P	C	P	P		C	C	P			
Storage, Yard													C	P					C		P
Employment Uses																					
Home occupations	P	P	P	P	P	P	P	P	P	P	P	P	P	P		P	P	P	P		P
Office – Limited (<3,500)					C	A		C	A	P	P	P	P	P		P	P	P	P		P
Office – general (3,500 – 20K)						C				C	P	P	P	P		A	P	P	P		P
Office – Major Office Complex (>20K)											P	P	P	P			P	P	P		P
Commercial Uses																					
Convenience Retail / Corner Store (<2k)										P	P	P	P			A	P	P	P		P
Neighborhood Retail (2K - 5K)										P	P	P	P			A	P	P	P		P
General Retail (5K - 25K)											P	P	P				P	A	P		P
Large-scale Retail (25K - 100K)											P	P	P				P	C	P		P
Warehouse Retail (> 100K)											P	P	P				P		P		P
Grocery Store <45K										P	P	P	P				P	P	P		P
Supermarket > 45K											P	P	P				P	C	P		P
Outdoor Sales, Limited										A	P	A				A	A	A	C		P
Outdoor Sales, Seasonal										C	A	C				C	C	C	C		P
Outdoor Sales, Event or Display Area										C	A	C				C	C	C	C		P
Outdoor Sales											C		C	C			C		C		P
Bars and liquor stores										C	C	P			A		C	C		P	P
Automobile Service Repair										C	P	C	P	P			C	C	P		P
Automobile Service Station - Limited										C	P	C	P	P			C	C	P	P	P
Automobile Service Station - General											P	C	P	P				C	P		P
Automobile Service Station – Large-scale											C		C	P					P		P
Food Service – Limited (under 2K)										P	P	P				P	P	P	P	P	P
Food Service – General (2K – 4K)										C	P	P					P	P	P	P	P
Food Service – Large-scale (over 4k)											P	P					P	P	P		P
Industrial Uses																					
Data Center										C	C	C	P	P			C	P	P		
Limited Industrial										A	A	P	P	P	P	A	P	P	P		P
Moderate Industrial												C	P	P			C	P	P		P
General Industrial													C	P					P		C
Industrial														C					C		C
Limited Outdoor Storage													P	P	C			A	P		C
Outdoor Storage													C	P				C			C
Impoundment Yards													P	P			C	C			C
Salvage yards													C	C							C
Junk yards														C							C
Air cargo terminals																				P	C
Aircraft sales, repair, service, storage and relating uses																				P	C
Railroad yards and maintenance buildings													P	P					P		C
Public Service Uses																					
Commercial and Public Parking Facility												P			P		P	P	P		P
Government Facility										P	P	P	P	P	P	P	P	P	P	P	P

Military																				P	P
Recycling Services											C		P	P			C	C	C		P
Transportation facilities											C		P	P	P				P	P	P
Utility Stations	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P	A	P
Agriculture Uses																					
General Agriculture	P	C											C	C	P				P	P	P
~~*Limited Agriculture*~~	~~P~~	~~P~~																		~~P~~	~~P~~
Gardens and Homemade Foods	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Agricultural equipment ~~or product~~ sales	C										P								P		P
Agriculture Product Sales / Farmers Market	P	P								P	P	P				P	P		P		P
Agritourism	P	P	P	C	C		C				C		P	P	P			P	P		P
Commercial stables ; and arenas and show barns	P ~~C~~	C																	P		P
Nurseries, landscaping	P	P									C		P	P			C				P
Concentrated Feeding Operations and Slaughterhouses	S												S	S					S		

P = Use permitted by right A = use permitted after administrative review C = Use permitted after conditional discretionary review

S = Use permitted after special use review (blank = prohibited use)

CITY OF CHEYENNE
PLANNING & DEVELOPMENT

CITY OF CHEYENNE PLANNING COMMISSION
OCTOBER 5, 2026
STAFF REPORT

REQUEST:	Text Amendments amending the Unified Development Code (UDC) amending 1.4.3 Defined Terms, 1.4.4 Descriptions of Uses of Land and Buildings; 2.2.3 Site Plan, 5.1.4 Districts and Uses, 5.7.2 Home Occupations, and 6.2.8 Parking Design
CASE NUMBER:	PLTA-26-4
PURPOSE:	Amendments to clarify use allowances relating to agricultural uses and when certain applications are required; and amendments to modify parking design standards to allow gravel parking.
PREPARED BY:	Seth Lloyd, AICP, Senior Planner

RECOMMENDED MOTIONS:

Move to recommend the Governing Body approve text amendments to the Unified Development Code amending UDC sections 1.4.3 Defined Terms, 1.4.4 Descriptions of Uses of Land and Buildings; 2.2.3 Site Plan, 5.1.4 Districts and Uses, and 5.7.2 Home Occupations as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

Move to recommend the Governing Body approve text amendments to the Unified Development Code amending UDC section 6.2.8 Parking Design as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

BACKGROUND:

This item was deferred to the October 5, 2026 Planning Commission meeting due to lack of a quorum at the September 21, 2026 Planning Commission meeting. In the interim, the City reviewed regulations regarding "animal unit" and have made minor edits to that definition. The remainder of the Staff Report and proposed amendments to the UDC are unchanged from the September 21, 2026 Staff Report.

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions.

In the annexing of various County pockets, City Staff was made aware of some concerns relating to City and municipal code relevant to agricultural uses. Some of these concerns seemed broadly applicable to all agricultural uses in the City limits – not just those being annexed. The City has already amended the municipal code ordinance around allowed grass height to recognize grazed and natural properties are different from landscaped areas.
The City now proposes four ordinances to further update and clarify codes relevant to agricultural uses. Two of these are municipal code only and will not be heard by the Planning Commission: changes to electrical fences in municipal code and changes to livestock regulations in municipal code. The other two would amend the UDC and are contained within this staff report. Staff is requesting two separate motions as the two amendments serve different purposes (though they are related).

The first ordinance amends various aspects of the UDC around agricultural uses. This amendment would change the UDC's defined terms and use definitions - and add the proposed new uses to the use table in the agricultural section. The UDC was adopted in 2012, but the State of Wyoming amended state rules around small-scale agriculture after the UDC adoption. As such, the UDC's definition and use allowance for 'Limited Agriculture' is out-of-date and needs to be overhauled. In addition this change and minor clarifications on other agricultural uses, Staff proposes adding an 'Agrotourism' use and a 'Concentrated Feeding Operations and Slaughterhouses' use. The former use would have likely had to been classified as a commercial use, but commercial uses are largely prohibited in agricultural zones. The latter use is specifically referenced as an exemption to the 'General Agriculture' category but nowhere else mentioned in the UDC. A request for this use would have likely been categorized in the 'Industrial' category or, more likely, would have triggered UDC 1.4.4's provision to go through the text amendment process for a use that does not really fit in any of the use categories. The use table is proposed to be updated for the new and clarified uses.

The first amendment also clarifies what uses would need a site plan. Generally, staff has not required a site plan for general agricultural uses such as the introduction of grazing to a property, but technically the UDC would require a site plan in that scenario. Along with updating the site plan exemptions for agricultural uses, the amendment proposes removing the site plan requirement for certain other uses, many of which currently do not truly go through the full site plan process.

The second amendment proposes allowing parking lots to be gravel in City limits. Currently all parking lots in the City are required to be paved, with no exceptions.

PROPOSED AMENDMENTS:

Summary: 1.4.3 Defined Terms
Three definitions are proposed to be added to the UDC. These definitions would be used with the proposed code amendments. All three of these proposed definitions would be added in alphabetical order in UDC 1.4.3 Defined Terms.

> *Animal Unit.* Animal unit (AU) is a standardized unit of measurement used to determine livestock density. One (1.0) Animal Unit shall be determined in accordance with the animal-unit

equivalencies set forth below, regardless of individual live animal weight. For any animal or poultry species not expressly listed above, the Director shall determine the appropriate Animal Unit classification based on the mature size and characteristics of the species:

1. Large Livestock (beef or dairy cattle, horses, and mules): 1.0 per animal
2. Medium Livestock (swine, sheep, goats, and alpacas): 0.20 per animal
3. Small Livestock and Poultry (chickens, turkeys, ducks, and rabbits): 0.02 per animal.

Incidental Cleaning and Processing. The incidental slaughtering, cleaning, field dressing, or processing of animals for personal consumption, including fish, wild game harvested through lawful hunting, or livestock raised on-site.

Personal or Non-Commercial Harvest. The customary, non-commercial harvesting, slaughtering, or processing of livestock as an accessory use to a primary residential or standard agricultural operation.

Summary: 1.4.4 Descriptions of Uses of Land and Buildings

A review of Agricultural uses resulted in one use proposed to be removed, three uses added, and other uses edited to reflect current uses and trends. With various amendments at the state level, the use category 'Limited Agriculture' was deemed not appropriate and has been replaced by a smaller-scale use entitled 'Gardens and Homemade Foods' with much more permissiveness (see edits to the Use Table – Section 5.1.4). Proposed changes to 1.4.4.h Agricultural Uses are below in blue strikethrough or red underline.

h. ***Agriculture Uses.***

The Agriculture use category is for uses that are commonly associated with an agrarian or rustic lifestyle, and which demand little or no public infrastructure or services.

General Agriculture.

The production of grain, animals, food and fiber; the science and art of farming and ranching; ~~and~~ the work of cultivating the soil, producing crops and raising livestock; and the small-scale, intermittent harvesting and processing of livestock raised primarily on the premises. General Agriculture specifically excludes C~~c~~oncentrated Animal ~~f~~Feeding O~~o~~perations, Commercial Stables, and Nurseries. ~~where swine are confined, fed and maintained for 45 consecutive days or more in any 12-month period.~~ Any agricultural use that exceeds the thresholds established by Gardens and Homemade Foods shall be considered General Agriculture.

~~*Limited Agriculture.*~~

~~The production of grain, animals, food and fiber on a small scale where any impacts on potential adjacent property from storage, operations, and equipment can be internalized into the site or buffered from abutting areas, typically not occurring on lots or parcels larger than 10 acres.~~

Gardens and Homemade Foods.
Use of a property to grow, harvest, prepare or process any food or drink products that does not produce more than ten thousand (10,000) individual food or drink products annually and does not exceed ten thousand dollars ($10,000.00) in gross revenue annually from the food and drink products. Gardens and Homemade Foods shall include livestock if permitted in the zone district by operation of municipal code. Examples include small residential gardens, community gardens, and small-scale agricultural operations on larger parcels.

Agricultural Equipment Sales~~and Supply~~.
An Agriculture use where the land and buildings are used for retail sales of equipment and materials used for agricultural-related land uses, and accessory servicing of agriculture equipment.

Agriculture Product Sales / Farmers Market.
An Agriculture use where land, trucks, trailers, or ~~and~~ buildings are used for the retail sale of raw agricultural products in accordance with any applicable state and federal regulations. ~~and operated without any additional or permanent site facilities than are otherwise associated with agriculture use.~~ Road-side stands, food stands, ~~truck sales~~and sales from trucks or trailers~~, or barn sales~~ are examples of such uses. ~~, however the intensity and frequency of such sales shall be so that no additional parking, roads, structures, warehouses, or other storage facilities are necessary on the site.~~ This use involves less than 2,000 square feet of gross leasable sales area.

Agritourism.
A commercial enterprise that links agricultural production with tourism, inviting visitors to working farms, ranches, or agricultural businesses. This use includes activities such as pumpkin patches, corn mazes, petting zoos and similar uses.

Arenas and Show Barns.
An Agriculture use where the land and buildings are used for show or sale of livestock, rodeos, and where the public can attend these and other related activities.

Commercial Stables.
An Agriculture use where land and buildings are used for the business of boarding horses, donkeys, mules, burros, llamas or other similar ~~equine~~ animals.

Nurseries, Landscaping.
An Agriculture use to grow plants of any kind for transplanting to another location or for sale as live plants rather than as crops, including the sale of related equipment and supplies.

Concentrated Animal Feeding Operations and Slaughterhouses.
An Agriculture Use where livestock are confined, fed and maintained for forty-five (45) consecutive days or more in any twelve (12)-month period, or where livestock are harvested as a principal use. Concentrated Feeding Operations apply only to properties with greater

than one (1.0) animal unit per acre. Slaughterhouse shall not include personal or non-commercial harvest or incidental cleaning and processing of animals.

Summary: 2.2.3 Site Plan

Updates to this section are related to what uses require a site plan submittal. Many uses, including basic agricultural uses, have not been required to submit site plans. The proposed changes codify the allowances. Currently the UDC would require a site plan to establish grazing, possibly even to rotate grazing areas and crop areas. Staff does not believe this was the original intent of the UDC. Proposed changes to 2.2.3.b Applicability (under the site plan section) are below in blue strikethrough or red underline.

b. Applicability. An application for a site plan shall be submitted by the owner or authorized agent where any of the following occur:
   1. Any change of use or a new building.
   2. Alterations to the site affecting over 15% of the nonbuilding area of the site (examples include changes to parking, or open space and landscape areas).
   3. Any other development activity or change of use that triggers applicability and compliance with any of the Design Standards in Article 6.
   4. Any other on-site development activity or change of use that triggers improvements in the public right-of-way and applicability and compliance with any of the Standards in Article 4.
   5. No site plan is required for:
      (a) single ~~family,~~ Detached Dwelling, Accessory Dwelling Unit, ~~d~~Duplex, or ~~t~~Townhouse development, except ~~when associated with~~the common lots associated with Cottage Lots; ~~or a Regulating Plan or Development Master Plan.~~
      (b) limited business operations occurring in a single-unit residential property, including Group Housing, Live/Work if the non-residential use is not required to have a site plan, Family Child Care Home (FCCH), Family Child Care Center (FCCC), and Home Occupations;
      (c) Agricultural uses which are not expected to have significant customer impacts, including Nurseries, Landscaping; Gardens and Homemade Foods; and General Agriculture (if no on-site sales are proposed);
      (d) Cemeteries;
      (e) Military mission-oriented facilities

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Summary: 5.1.4, Districts and Uses, (Table 5-1: Zoning District Uses)

The Use Table is amended to remove Limited Agriculture and include the uses added in Section 1.4.4. The amendment would also define what zones those uses are allowed in. An excerpt from the table showing these uses and their proposed permissibility is below. Proposed changes are in blue strikethrough or red underline.

Table 5-1: Zoning District Uses																					
Zoning Districts / *Category of Uses / Specific Uses*	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS
Agriculture Uses																					
General Agriculture	P	C											C	C	P				P	P	P
~~*Limited Agriculture*~~	~~P~~	~~P~~																		~~P~~	~~P~~
Gardens and Homemade Foods	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Agricultural equipment ~~or product~~ sales	C										P								P		P
Agriculture Product Sales / Farmers Market	P	P								P	P	P				P	P		P		P
Agritourism	P	P	P	C	C		C				C		P	P	P			P	P		P
Commercial stables; and arenas and show barns	P ~~C~~	C																	P		P
Nurseries, landscaping	P	P									C		P	P			C				P
Concentrated Feeding Operations and Slaughterhouses	S												S	S					S		

P = Use permitted by right A = use permitted after administrative review C = Use permitted after conditional discretionary review
S = Use permitted after special use review (blank = prohibited use)

Summary: 5.7.2 Home Occupations

The amendment proposes amending when a home occupation is required. For truly incidental operations, such as someone selling excess fruit to a friend, requiring a home occupation seems excessive. However, home occupations are generally required for someone using their house as a 'home base' for a registered business. The changes to this section propose some exemptions to the home occupation requirement. Proposed changes to 5.7.2.k Specific Allowances (under the home occupation section) are below in red underline.

k. Specific Allowances.

1. Mobile Service Providers Permitted at Client Residences. Certain businesses that involve providing services at a client's home are permitted to operate at the client's residence and are not subject to home occupation regulations at that location provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include house-call veterinarians, mobile massage therapists, mobile pet groomers, and similar providers.
2. Office-Only Use for Off-Site Businesses. A business that is not typically permitted to operate as a home occupation may be allowed if the home is used exclusively for office-related functions and no clients, customers, employees, or business activities

take place at the home provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include administrative work, scheduling, bookkeeping, or storage of vehicles or materials related to businesses that operate off site like food trucks, lawn care businesses, snow removal services, etc.

3. Garden and Homemade Foods. Garden and Homemade Foods, including personal or non-commercial harvest, and incidental cleaning and processing of animals are exempt from requiring a home occupation if the Garden and Homemade Foods are conducted without a defined business entity and there are no on-site sales. Garden and Homemade Foods conducted using a defined business entity or with on-site sales is required to receive home occupation approval.

Summary: 6.2.8 Parking Design

The changes to parking are considered different enough from the other proposed amendments that Staff will be running the change as a separate Ordinance. Staff is requesting a separate motion on this item. Issues with this section regarding the universal requirement to pave all access, drive, and parking areas have arisen outside of the agricultural context. However, agricultural uses are brought into the issue – at present, if someone wanted to establish a vegetable farm on City AG zoned parcel, they would be required to pave all accessways and parking areas on their site – even if there was no anticipation of customers vesting the site. The proposed amendment allows for certain exemptions from the paving requirement. Proposed changes to 6.2.8 Parking Design are below in blue strikethrough or red underline.

a. ***Location, Size and Landscape Requirements.*** All on-site parking shall be broken into smaller "parking blocks" and include landscape design according to the following Table 6-5. Specific zoning districts or design standards may further limit the general size and location of on-site parking spaces and parking blocks.

Table 6-5: Parking Location, Size and Landscape Requirements			
	Front	***Side***	***Rear***
250+ spaces	Must be broken into smaller parking blocks.*	Must be broken into smaller parking blocks.*	5% internal landscape; AND 8' perimeter buffer
151 to 250 spaces	10% internal landscape; AND 12' perimeter buffer	8% internal landscape; AND 10' perimeter buffer	5% internal landscape; AND 8' perimeter buffer
101 to 150	8% internal landscape; AND 10' perimeter buffer	5% internal landscape; AND 8' perimeter buffer	5% internal landscape; OR 8' perimeter buffer
31 to 100 spaces	5% internal landscape; AND 8' perimeter buffer	5% internal landscape; OR 8' perimeter buffer	No requirement
30 and under spaces	5% internal landscape; OR 8' perimeter buffer	5% internal landscape; OR 8' perimeter buffer	No requirement

* Where individual sites require or provide parking requirements larger than the maximum size, parking lots shall be broken into "parking blocks" meeting the size, location, and landscape requirements of this table.

1. *Perimeter Buffer Standards*. Perimeter landscape buffers shall be continuous around the parking block except at vehicle access points or any portion of the parking block that is bordered by buildings. The buffer shall include landscape materials meeting the requirements of Section 6.3. Where the landscape setback required by 6.3.3 is larger than the perimeter parking buffer required by Table 6-5, the greater buffer shall apply. Where perimeter landscape buffers include sidewalks meeting the internal pedestrian circulation requirements, the width of the sidewalk shall be added to the minimum required width for the perimeter buffer. Where parking blocks are located adjacent to one another, they may share the perimeter buffer along the common boundary provided it includes a pedestrian facility.
2. *Internal Landscape Standards*. Internal landscape area shall be provided as a percentage of the parking area, exclusive of drive aisles, as specified in Table 6-5. Internal landscape area shall be surrounded by raised curbs or other approved edge treatment that infiltrates stormwater, and shall include landscape materials meeting the requirements of Section 6.3. Internal landscape areas shall be allocated as end caps to parking aisles, as intermediate islands within aisles, or as buffer strips between aisles. All internal landscape areas shall be at least 8' wide in all dimensions, and shall be no less than 150 square feet in area. Where internal landscape areas include sidewalks meeting the internal pedestrian circulation requirements, the width of the sidewalk shall be excluded from the area calculation of the internal landscape area. Internal landscape islands shall include one large canopy tree per every 150 square feet, which may contribute to the tree points required by Section 6.3.4.
3. *Limitations in the Pedestrian Districts*. In the NB, MUR, and MUB districts, the following additional design standards and limitations shall apply:
   (a) No individual on-site parking shall be located within 20' of the front lot line unless it is located to the side of a building as provided in sub-section b;
   (b) Parking may be located to the side of the building in a limited manner provided:
      (1) the lot includes no more than 20 spaces at the side of the building;
      (2) the lot provides no more than two rows of spaces served by a single drive aisle, and is otherwise limited in width along the streetscape to the greatest extent possible; and
      (3) it is screened from the streetscape by a 2.5' to 4' decorative fence or wall matching the materials and architectural style of the building, and extended at the front building line.
   (c) Shared or public parking, or common "parking blocks" may be located along a street provided that the lot is no larger than 100 spaces, has a 8' perimeter buffer, and is screened from the street by a 2.5' to 4' decorative fence or landscape screen.
4. *Limitations in Residential Districts*. In all residential districts, where parking lots over 15 spaces are required for any use, the following additional design standards and limitations shall apply:
   (a) The parking area shall be setback behind the front building line or at least 30' from the front lot line, whichever is greater.

(b) All parking areas shall have an 8' perimeter buffer used to screen the area from adjacent residential uses.

(c) Individual parking blocks shall be no larger than 50 spaces for any one use.

5. *Exceptions*.

(a) The Director may approve exceptions to these design and location standards for lots under 10 spaces where:

(~~a~~1) It is reasonably necessary to accommodate infill development;

(2~~b~~) There has been no recent investment and is no anticipated investment in the public streetscape that will be negatively impacted by the proposed alternative location and design; and

(3~~c~~) The exception presents the least deviation from the standards necessary, and otherwise furthers the design objectives of this section.

(b) The Director may approve exceptions to ~~these~~the design and location standards of this subsection ~~for~~ for unpaved parking areas through the Administrative Adjustment process of this Code.

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b. ***Dimensional Requirements.***

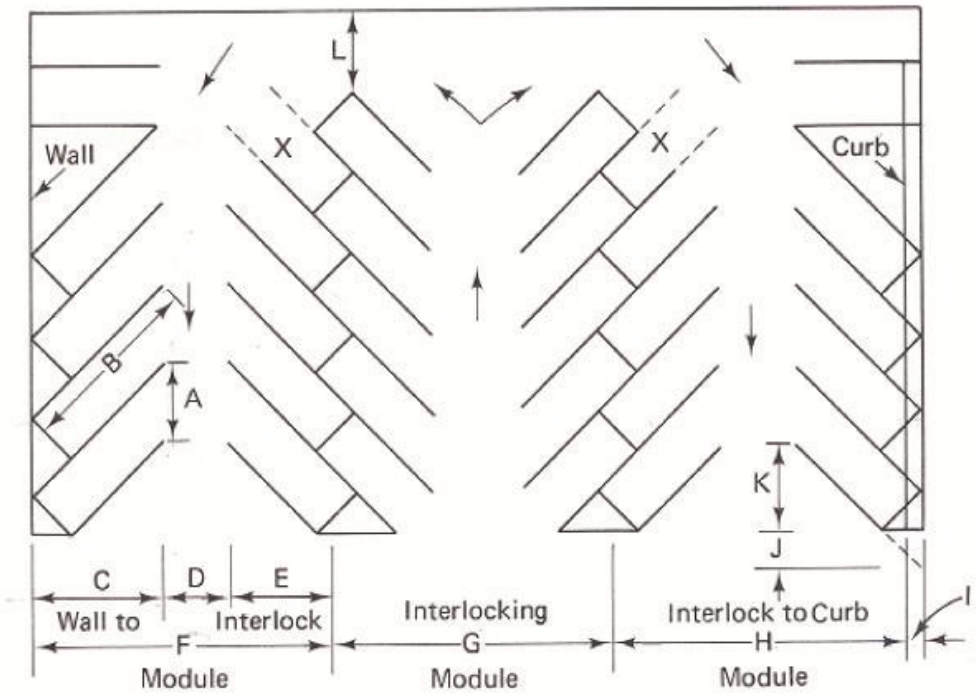
Figure 6-4 (Parking Layout Dimensions for Stalls at Various Angles)

Table 6-6: Parking Stall Dimensions and Layout							
Parking Angle / Width ~~(A)~~	***Width Parallel to Aisle (~~K~~A)***	***Depth to Wall (C)***	***Depth to Interlock (E)***	***Aisle Width* (D)***	***Module** (F, G, H)***		***Bumper Overhang (typical) (I)***
					Wall to Wall	***Interlock to Interlock (G)***	
45° / 9.0′	12.7′	19.5′	16.5′	12′	51′	45′	2.3′
45° / 9.5′	13.4′	19.5′	16.5′	11′	50′	44′	2.3′
60° / 9.0′	10.4′	20.5′	18.5′	16′	57′	53′	2.3′
60° / 9.5′	11.0′	20.5′	18.5′	15′	56′	52′	2.3′
75° / 9.0′	9.3′	20.0′	19.0′	23′	63′	61′	2.5′
75° / 9.5′	9.8′	20.0′	19.0′	22′	62′	60′	2.5′
90° / 9.0′***	9.0′	18.5′	18.5′	26′	63′	63′	2.5′
90° / 9.5′***	9.5′	18.5′	18.5′	25′	62′	62′	2.5′

* Measured between ends of stall lines.

** Rounded to the nearest foot.

*** For back-in parking, aisle width may be reduced 4.0 ′.



X = Stall not accessible in certain layouts

c. ***Grading and Surfacing.*** All parking, circulation and loading areas shall be graded for proper drainage and be paved, unless specified otherwise in these regulations. The maximum grade shall not exceed 8%. The maximum desirable grade in any direction is 5%. Notwithstanding the surfacing requirement above, gravel or compacted aggregate surfacing may be used in lieu of paved surfacing in the following circumstances, subject to approval by the Director. Alternative surfaced areas shall be required to pave ADA spaces and accesses onto a public right-of-way in accordance with Article 4. The Director may not approve gravel surfacing if deemed inconsistent with the development standards or character of the surrounding area.

1. Agricultural Uses. Parking areas associated with agricultural operations, including farm stands, agritourism uses, and working farms, where the parking area serves as an accessory use to the agricultural activity and is located on property used predominantly for agricultural purposes.
2. Single Family Residential. Parking areas associated with Detached, Semi-attached, Attached Dwellings and related Accessory Dwelling Units.
3. Low-Usage or Overflow Parking. Overflow or supplemental parking areas serving low-frequency uses where peak demand occurs fewer than fifty-five (55) times per year, including but not limited to overflow parking for Civic Uses, Entertainment venues, Outdoor Recreation Facilities, parks, open space, trailheads, and similar outdoor and assembly uses.
4. Regional Stormwater Management. Parking areas where the applicant demonstrates, to the satisfaction of the City Engineer, that installation of impervious paved surfaces would adversely affect regional stormwater conveyance, groundwater recharge, or compliance with an adopted stormwater management plan. Such a demonstration shall be made through a site-specific stormwater analysis prepared by a licensed engineer, identifying the adverse impacts and explaining how gravel surfacing mitigates or avoids those impacts.

d. ***Parking Area Maintenance.***

The responsibility for the maintenance of parking areas provided for use by the general public, customers, or employees shall lie with the property owner and/or their agents. All parking areas and accessways, whether paved or surfaced with gravel or compacted aggregate, shall be permanently maintained in good and safe condition to prevent damage to vehicles, minimize or eliminate tripping hazards, and maintain ADA accessibility and, whenever necessary, be repaired to ensure continued compliance with the standards of this Code. Maintenance shall include patching cracks and sealcoating paved surfaces; filling potholes, grading uneven surfaces, recompacting compacted aggregate surfaces, repairing pavement depressions and uneven surfaces; and maintaining drainage flow, drainage conveyance methods, and drainage infrastructure. All parking area striping, directional arrows, and parking-related signage shall be maintained in a manner that they remain clearly visible. Maintenance shall also include maintenance of parking lot landscaping required under this Code, parking lot lighting, and keeping parking areas free and clear of weeds, junk, and nuisances.

ANALYSIS OF CONFORMANCE WITH REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. **COMPREHENSIVE PLAN**:
   "The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

   PlanCheyenne encourages minimizing conflicts between development and agriculture, and preserving the region's ranching and agricultural heritage. Specifically, Policy 5.5.C encourages the County to develop tools to support the business of agriculture and ranching. Although strictly the plan requests the County to address these issues, the principles included could apply to recently annexed land or even to more urban lands for smaller operations. These principles include home-based operations, roadside stands, and agritourism.

   PlanCheyenne encourages attractive, useful, and integrated parking areas, including flexibility for infill or re-use sites. Pavement is not specifically mentioned for parking lots, other than to discourage large expanses of pavement.

   PlanCheyenne also encourages flexibility to respond to market demands and a business-supportive environment – especially for smaller businesses and entrepreneurs. These smaller-scale businesses and entrepreneurs may be looking to start small with 'overflow' parking areas or to provide new agricultural uses. The proposed code gives staff the tools to right-size regulation to the proposed use or disturbance of land.

2. **STATE STATUTORY REQUIREMENTS**:
   "The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes." (The following Articles are all listed verbatim from Wyoming State Statute)

   From ARTICLE 6 – ZONING of TITLE 15 CITIES AND TOWNS:

   WY 15-1-601. Regulations; scope and purpose; uniformity within authorized districts; to follow plan; objectives.

   (a) The governing body of any city or town, by ordinance, may:

   (i) Regulate and restrict the:

   ….

   (E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.

   …

   (d) All regulations shall be made:

   …

(ii) With reasonable consideration, among other things, of the character of the district and its peculiar suitability for particular uses;
(iii) With a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city or town;

Assessment: This amendment proposes modifying the Unified Development Code to provide additional local land use control of specific uses within the City, which is authorized by state statute.

3. **HEALTH, SAFETY, AND PUBLIC WELFARE**:
"The amendment promotes the general health, safety and public welfare."

Although some may argue that unregulated food production and sales may have possible detriments to public health, others may argue that access to local, unprocessed foods supports the public health. The State has determined that the local, small-scale production and sale of food is appropriate for the general welfare of the state – including clear labeling of such foods, and the UDC matching this determination is appropriate. Clarifying uses and processes are not detrimental to the public health, safety, and welfare.

Gravel parking areas are generally less safe for the public, but large expanses of underutilized paved areas can be detrimental to the public welfare due to effects on drainage, heat, and cost to maintain. Allowing parking lots to be unpaved in areas with less traffic or in more natural areas would be a net gain to the public benefit.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

This item was advertised in the paper for the September 6, 2026, Planning Commission, and published online on August 13, 2026. The website has received 831 views and 8 comments.

As of the publication of the Staff Report (September 14, 2026), Staff has received the following inquires or comments from the general public on this project:

- Various comments from the Wyoming Department of Agriculture asking staff to refine definitions and adjust references to state and federal regulations. This included a request to reduce the quantities set under 'gardens and homemade foods'.
- Comments received via letter:
    - "1. Will the removal of the term "nurseries" prevent WyFresh from propagating plants for sale in the spring? We don't want to take a chance that this propagation may be eliminated because it is considered a "nursery." Is "nursery" defined anywhere that could be of assistance with this question?"

  - "2. Does the elimination of the term "supply" prevent the Kniseleys/WyFresh from selling BioComplete compost/poultry grit and calcium and extract. These items are prepared on site and sold because they are not otherwise available in Cheyenne."
  - "3. In terms of General Agriculture. What is the meaning of "small-scale, intermittent harvesting and processing of livestock"? How are small-scale and intermittent defined and at whose discretion?"
  - "4. We are also concerned about the change in definition and the prohibition for "Concentrated Feeding Operations and Slaughterhouses." Normally, a "concentrated feeding operation" is large with around 1,000 animals, but this definition - feeding for 45 days in a 12- month period makes it appear that even raising a few animals including chickens, other poultry, rabbits, calves, pigs, etc. will not be permitted."
  - "5. Does the statement, "if no on-site sales are proposed" pertain only to landscaping or does it also pertain to General Agriculture?"
  - "6. There is no key, so it is unknown what "S" stands for, can you let us know? It appears to be a prohibition, but that is not clear."
  - "7. Is the requirement for "home occupation approval" difficult to achieve, what are the parameters of this? Is it the same as a home occupation "license." Is there a chance that the Kniseleys/WyFresh would be denied this approval?"
  - "8. AG is exempted under paragraph c, "grading and surfacing." Does AG need to comply with parking designs in 6.2.8 (location, size, landscape)?"

- Comments from Online (Public Input):
  - "WYfresh will have comments forwarded to Planning through our attorney, Gay Woodhouse. At this point the amendments are inadequate to address our needs or those of Urban Farming in general."
  - "1. Table 5.1.4 is pointless, because no key is provided to decipher the acronyms. Please provide one and make it available to the public for comment."
  - "2. Slides presented by Mr. Bloom, the Planning and Development Director of Cheyenne, were not the same as the printed material provided at the work session or available online. Please make it available so the public can comment."
  - "3. Even though it's not written, Mr. Bloom expressed the intent of the city for Agriculture Product Sales / Farmers Market was to limit the buildings to temporary buildings only. The buildings would not allow public occupation, need to be open less than six months of the year, and hand-washing sinks may be problematic. This obviously has significant negative impacts to the WYfresh farmstand. Please include your intent and open it up for public comment."
  - "4. Referencing #3 above, how is the time frame calculated? Consecutive days? Please include and open it up for public comment."
  - "5. The agenda and video of the August 21, 2026 Special Meeting are missing from the city of Cheyenne's website. Please include them for transparency."
  - "6. Please note that the other family whose home is being annexed, was not informed of the proposed changes in code that will affect their home and

possible livelihood. Please inform those affected by code changes for transparency."

- "I think the city council should oust the people that are using gravel parking , everything that is proposed before them make a decision"

Staff notes on comments received:

- Various concerns and recommendations have resulted in defined changes to the proposed ordinance.
- There was no intent for this set of regulations to set up defined 'temporary uses'. The uses are intended to establish permanent uses and include permanent buildings. Permanent uses will be required to have a site plan (unless listed as one of the exempt uses) and permanent buildings are expected to meet applicable building code requirements.
- Any discrepancies between the text that was made available online and in the work session was unintentional. Due to comments received, edits have been made to the proposed text, and the text in this Staff Report is the most current edition. Text could be further edited by the Planning Commission.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.4.1.d.

ALTERNATIVES:

1. Recommend approval of the Text Amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Text Amendment subject to conditions or modifications.
3. Recommend denial of the Text Amendment based on findings of denial. The Planning Commission must conclude that the project does not meet at least one of the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Text Amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

Staff recommends approval of text amendments amending the Unified Development Code (UDC) amending 1.4.4 Descriptions of Uses of Land and Buildings; 2.2.3 Site Plan, 5.1.4 Districts and Uses, 5.7.2 Home Occupations, and 6.2.8 Parking Design.

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10/5/2026

The Honorable Mayor Collins and Members of the Cheyenne City Council
c/o Chief of Staff Amber Ash
2101 O'Neil Avenue
Cheyenne, WY 82001

RE : Wy Fresh Farms/David and Tommie Kniseley Annexation

Dear City of Cheyenne:

In anticipation of the November 9, 2026 vote on the Third and Final Reading of the Annexation Ordinance which may incorporate WyFresh Farms ("Farm") into the City of Cheyenne, we are asking that the following issues be addressed in a comprehensive manner before that meeting.

The following are the items that need to be addressed. We want to work cooperatively with the City to seek urban farm definition and ordinances that support WyFresh Farms and allow it to continue as a working farm with farmstand and to promote future growth of the Farm. We look forward to following the city's directive that "the City's intent is to allow WyFresh to continue to operate, expand within code and thrive as an agricultural enterprise within the city limits."

1) An Ordinance that clearly defines Urban Farm and includes the language the Right to Farm Act specifically stating that farm operations are not considered a public or private nuisance as long as the farm operation conforms to generally accepted agricultural management practices. This Ordinance shall include livestock (as defined in W.S. 11-6-302(a)(vi), guardian dogs, terrier dogs for rodent control, barn cats, and other farm animals. It should also provide for expansion within the boundaries of the annexed property.
2) An Ordinance that permits the use of installation of electric fence on the property which may be constructed in a manner regarding the size, structure and placement which will keep predators at bay.

3) An Ordinance which allows for the annual movement of temporary structures including but not limited to caterpillar tunnels, hoop houses and low tunnels used for growing products on the property without further permitting during any given year.
4) An Ordinance that includes the Farmstand's continued operation and does not unreasonably limit the number of customers or vehicles that may access the Farmstand per year.
5) Ordinances which modify the need to clean trash on the borders, especially those borders where the trash comes from outside the boundaries of WyFresh's property.
6) City of Cheyenne commits to conducting drainage studies to deal with the drainage that is coming from offsite improvements onto the WyFresh property which damages the fences and the land.
7) City of Cheyenne completing the work on the City damaged fences on the east side of the property as well as the southwest of the property. WyFresh would like to have this matter addressed promptly in accordance with the offer and response that was made by Doug Klahn in February. (see attached). WyFresh would like to partner with the City for additional fencing to ameliorate the problems with not being able to use firearms to fight predators.
8) City of Cheyenne installing barriers to prevent vehicles from causing damage to the fences on the property.

We are asking that drafts of the pertinent ordinances and code be provided by mid-June to ensure that they could be passed in time for WyFresh to believe that the true meaning of Urban Farm is captured and that the rights that they have as a farm are being preserved. We understand from some of our meetings and representations made at City Council meetings and Committee hearings, that the language for most of these issues have already been drafted.

We look forward to working with you cooperatively to make annexation a favorable choice for WyFresh farms.

Respectfully submitted,

Gay Woodhouse

Request for Amendments to Rules Regarding Agriculture
10/05/2026
WY Fresh Farm, 200 Walterscheid Blvd, Cheyenne

Amend 6.08.090 Add C. = "This section shall not apply to any working farm."

Amend 6.08.110 Add "except as provided by WY Statute 11-44-103"

Amend 6.08.030 C Add #5 Livestock Guardian Dogs, Rodent Control Dogs and Barn Cats

Amend 6.08.070 Add "This section shall not apply to any Livestock Guardian Dog."

Amend 8.60.035 Add "This section shall not apply to any working farm."

Amend 8.60.030 Add "except as is consistent with WY Statute 11-44-103"